

REPUBLIC OF THE PHILIPPINES
SENATE
PASAY CITY

Impeachment Court

IN THE MATTER OF:

Case No. 004-2026

THE IMPEACHMENT OF VICE PRESIDENT
SARA ZIMMERMAN DUTERTE

X-----X

ANSWER

Respondent Vice President **SARA ZIMMERMAN DUTERTE**, through counsel,
states:

1. The Articles of Impeachment¹ are void because:
 - a. The proceedings in the Committee on Justice are tainted with manifest partiality and evident bad faith indicative of prejudgment. The opening speeches of its Chairperson and its members' declarations that they already possess enough "evidence" or "votes" to impeach the respondent² even before the conclusion of their *mini-trial* demonstrate that the resulting alleged finding of probable cause was a foregone conclusion;
 - b. The Articles are the product of an unconstitutional usurpation of power that neither belongs to the House of Representatives³ nor its Committee on Justice. This procedural artifice of conducting a mini-trial where the apparent intent was to trawl for evidence against the respondent and interpreting them to systematically impugn her reputation before the general public, is a direct affront to the

¹ Hereafter, Articles

² House justice panel's Zamora on votes to impeach VP Sara: 'We have the numbers', INQUIRER.net, available at <https://www.gmanetwork.com/news/topstories/nation/981723/house-votes-zamora-sara-duterte-impeachment/story/> (last accessed May 25, 2026); Abante confident House to muster 'more than enough' votes on Sara Duterte impeach raps | ABS-CBN News, available at <https://youtu.be/qlgXHaMUCwE> (last accessed May 25, 2026); Abante: 4th impeachment complaint vs. VP Sara Duterte has enough evidence, available at <https://youtu.be/9ThCumdZn2U> (last accessed May 25, 2026); Zamora sees enough votes, solid impeachment case vs VP Sara Duterte | ANC, available at <https://youtu.be/wS7yarW4BIl> (last accessed May 25, 2026)

³ Hereafter, HOR

Constitution, which exclusively vests the power to try an impeachment case solely in the Senate;⁴

- c. The Articles violate the doctrinal ruling in Duterte v. House of Representatives⁵ requiring that "the basis of any charge must be for impeachable acts or omissions committed in relation to their office and during the current term of the impeachable officer."⁶ Here, the Articles include purported acts or omissions that were outside her present term as Vice President and supposedly committed during her tenure as Mayor and Vice Mayor of Davao City, which are non-impeachable offices;
- d. The evidentiary foundation purportedly supporting the Articles is constitutionally infirm. The body of evidence relied upon by the Committee on Justice consists largely of evidence extraneous to the Saballa⁷ and Cabrera⁸ Complaints, produced and made available with questionable convenience during the course of the mini-trial and presented therein only after the respondent had already filed her Answer, thereby depriving her of any opportunity to confront and address them in her Answer and violating her right to due process;
- e. The Articles are the direct consequence of a *fishing expedition* to obtain materials as evidence in support of the accusations against the respondent. Having been derived through constitutionally impermissible means, these alleged evidence are excludable as fruits of the poisonous tree and which cannot serve as bases for impeachment;
- f. The referral process attending the Impeachment Complaints⁹ was infirm as there were no deliberations made during the plenary session on February 23, 2026 contrary to the doctrine laid down in Gutierrez v. House of Representatives¹⁰

⁴ See 1987 Constitution, Article XI, Section 3 (6)

⁵ G.R. No. 278353, July 25, 2025

⁶ *Id.*

⁷ Full title: In the Matter of the Verified Complaint for Impeachment Against the Vice President of the Republic of the Philippines, Hon. Sara Zimmerman Duterte filed February 2, 2026

⁸ Full title: In the Matter of the Impeachment of Sara Z. Duterte as Vice President of the Republic of the Philippines filed February 2, 2026

⁹ In reference to the Castro, Dee, Saballa, and Cabrera Impeachment Complaints

¹⁰ G.R. No. 193459, February 15, 2011

that “[f]ar from being mechanical, before the referral stage, a period of deliberation is afforded the House, as the Constitution, in fact, grants a maximum of three session days within which to make the proper referral.”¹¹

- g. The Articles are barred by the One-Year Bar Rule since the Castro and Dee¹² complaints were effectively dismissed on March 2, 2026. The Saballa and Cabrera complaints are therefore barred by the One-Year Bar Rule pursuant to the doctrine in Duterte that “[t]he one-year bar is reckoned from the time an impeachment *complaint* is dismissed or no longer viable;”¹³
- h. Like the Saballa and Cabrera Complaints upon which they are based, the Articles contain no statement of any ultimate facts as the allegations therein remain to be mere speculations, conjectures, conclusions, and surmises; and
- i. The Articles do not contain any sufficient factual and legal bases to sustain any impeachable offense.

Admissions and Denials

2. Respondent only admits the allegations in the Articles insofar as it states her election,¹⁴ assumption to the Office of the Vice President,¹⁵ and terms of her previous offices as Secretary of Education,¹⁶ Mayor,¹⁷ and Vice Mayor of Davao City.¹⁸

3. The rest of the allegations in the Articles, including the supposed evidence attached therein, are specifically denied for being false, misleading, impertinent, mere conclusions of fact and law, and subject to the affirmative allegations and special and affirmative defenses below.

¹¹ Gutierrez, *supra* at note 10

¹² In the Matter of the Verified Complaint for Impeachment Against the Vice President of the Republic of the Philippines, Hon. Sara Zimmerman Duterte filed February 2, 2026 and In the Matter of the Impeachment of Sara Z. Duterte as Vice President of the Republic of the Philippines filed February 2, 2026, respectively

¹³ Duterte, *supra* at note 5

¹⁴ Articles of Impeachment, p. 2

¹⁵ *Id.*

¹⁶ *Id.*

¹⁷ *Id.*, p. 9

¹⁸ *Id.*, p. 8

Affirmative Allegations

4. The HOR of the 20th Congress prefaced the Articles of Impeachment with a sweeping indictment of the Vice President, claiming that she has purportedly *“attempted to dismantle the very foundation of accountability upon which the Republic is built.”*¹⁹

5. Yet, a genuine fidelity to law and accountability, especially within the sphere of a constitutional mechanism as the impeachment process, is not subservient to any political agenda. Our Constitution did not put in place impeachment as an accountability measure only for it to be abused by those in power.

6. Those who crafted the Articles of Impeachment further claim that the Vice President has *“rendered herself an outcast to the Constitution and a threat to the democratic order she was sworn to uphold”*,²⁰ conveniently forgetting that no less than the Supreme Court declared the first impeachment effort in 2025 originating from the House of Representatives of the 19th Congress, as constitutionally infirm, null and void *ab initio*, and said Articles of Impeachment violated due process of law.²¹

7. Thus, when the architects of these Articles of Impeachment accuse the Vice President of rendering herself an outcast to the Constitution, they feign amnesia of the legally recorded fact that it was the HOR that was found to have historically acted outside the bounds of the Constitution and committed grave abuse of discretion in its effort to impeach the Vice President. They ignore at will that just a few months ago, that finding of unconstitutionality and grave abuse of discretion on the part of the HOR was made final by the Supreme Court.²² It is therefore not the Vice President who carries an immutable record of gravely abusing her discretion and violating her Constitutional mandate.

8. Fidelity to law and the Constitution is neither forgetful nor selective. Neither does it submit to the convenience of those in power nor does it excuse the very abuses it purports to reject.

9. In its January 28, 2026 Resolution in Duterte vs. House of Representatives, et al.,²³ the Supreme Court reminds us:

Impeachment is a powerful democratic process to call out corruption and grave abuse.

But impeachment can be abused. It has never been imagined in our basic law as a tool for the powerful to maintain the status quo, to maintain a political faction in power by silencing independent, strident, and insistent critics. Impeachment should never be abused to maintain the hegemonic dominance of greed by

¹⁹ Articles of Impeachment, p. 1

²⁰ *Id.*

²¹ Duterte, *supra* at note 5

²² See Duterte, *infra* at note 23

²³ G.R. No. 278353, January 28, 2026

shaming those who occupy high government positions into preventing them into doing what they were sworn to do.

*** *** ***

The rule of law that does justice is our lodestar. Justice includes accountability. Justice also includes fairness. **Without fairness, there is abuse.** This fairness is what our democracy is all about.

There is a right way to the right thing at the right time. That is inherent in the rule of law. That is inherent in the rule of justice.²⁴ (emphasis and underscoring added)

10. The Articles of Impeachment and the purported evidence transmitted by the HOR are the product of an impeachment proceeding that bears all the hallmarks of grave abuse of discretion at its very foundation. The televised coverage of the committee hearings made it clear that the birth of the Articles of Impeachment was a foregone conclusion and the hearings were staged performances and a trawling search of justification for a pre-ordained result.

11. The circumstances surrounding the impeachment proceedings in the HOR and its Committee on Justice, and the approval of the Articles of Impeachment, indubitably point to the fact that none of the allegations in the four (4) Articles rises to the level of any impeachable offense. Neither the charges in the Articles nor the claimed evidence satisfy constitutional and legal standards.

12. Here, while the constitutional authority of the HOR is expressly and narrowly confined to the initiation of impeachment proceedings under Section 3(1), Article XI of the Constitution, the well-publicized hearings conducted by the Committee on Justice, however, reveal a clear effort to circumvent this limitation by transforming its proceeding into a fishing expedition and *de facto trial* that the Committee Chairperson described in her media interviews as a “mini-trial.”²⁵

13. In fact, the alleged evidence procured by the HOR in this mini-trial were not part of the Saballa and Cabrera Complaints referred to it for evaluation, which further proves that the impeachment proceeding was an angling excursion. The curated production and presentation of evidence extraneous to the two Complaints betray a calculated effort to circumvent the constitutional boundaries that define the limits of the HOR’s role in the impeachment process. Simply put, the HOR’s mini-trial was, in reality, a prohibited fishing expedition to gather indirectly what it is not authorized to do by direct constitutional means.

14. Certainly, our Constitution does not permit encroachment of constitutional boundaries, whether direct or indirect. The rule of law abhors circumvention of constitutional limitations to power, regardless of some proclaimed lofty ideals. Under our system of government, no branch may usurp powers and

²⁴ Duterte, *supra* at note 5, pp. 46-47

²⁵ See ANCalerts SoundBytes, available at <https://www.youtube.com/shorts/FbpKQ-dzdGw> (last accessed May 25, 2026)

prerogatives allocated by the Constitution to another. In this case, the Constitution is clear: the HOR initiates, the Senate tries.

15. Thus, on April 1, 2026, the respondent filed with the Supreme Court a Petition for Certiorari and Prohibition [With Urgent Application for Temporary Restraining Order and/or Writ of Preliminary Injunction] dated March 30, 2026 entitled "Sara Z. Duterte v. House of Representatives, et al." and docketed as G.R. No. E-05667.²⁶ The material averments in that Petition as well as all records and annexes appended thereto are adopted and repleaded herein by reference.²⁷

16. Given that the Supreme Court has yet to rule on said Petition and this Honorable Court had ordered the respondent to submit her Answer to the Articles of Impeachment within a non-extendible period of ten days from her receipt of the Summons on May 20, 2026, the respondent is thus constrained to file this Answer.

17. Nonetheless, as the Petition questions the constitutionality of the acts taken by the HOR as well as of the Saballa and Cabrera Complaints, the respondent is submitting this Answer without waiver of any jurisdictional and other objections already raised long before the transmittal of the Articles to this Honorable Court. The respondent maintains her position that the Articles of Impeachment are unconstitutional and thus void *ab initio* for the reasons enumerated here.

18. Being unconstitutional and void *ab initio*, the Articles of Impeachment must be struck down and the impeachment case dismissed outright. This is the only recourse consistent with the design of the Bill of Rights, that applies to the entire impeachment process,²⁸ to preserve the ideals of liberty, equality, and security "against the assaults of opportunism, the expediency of the passing hour, the erosion of small encroachments, and the scorn and derision of those who have no patience with general principles"²⁹ shown in the proceedings conducted by the HOR and the Committee on Justice.

Special and Affirmative Defenses

19. The foregoing allegations are repleaded herein by reference.

20. ***Impeachment proceedings are void, being attended by evident bad faith and manifest partiality.*** The opening speeches of Committee on Justice Chairperson, and its members' declarations that they already possess enough "evidence" or "votes" to impeach the respondent even before the conclusion of their mini-trial demonstrate that the resulting alleged finding of probable cause was a foregone conclusion.

²⁶ A copy of the Petition for Certiorari and Prohibition [With Urgent Application for Temporary Restraining Order and/or Writ of Preliminary Injunction] dated March 30, 2026 is attached as **Annex 1**

²⁷ *Id.*

²⁸ Duterte, *supra* at note 5, p. 3

²⁹ Philippine Blooming Mills Employment Organization v. Philippine Blooming Mills Co., Inc., G.R. No. L-31195, June 5, 1973

21. The Constitution ordained that “no person shall be deprived of life, liberty, or property without due process of law.”³⁰ It has been held that “[a]ny violation of the right cannot be condoned, for the impartiality of the judge who sits on and hears a case, and decides it is an indispensable requisite of procedural due process.”³¹

22. The Supreme Court has declared that “[a]s with all constitutional processes, impeachment must be exercised with strict adherence to due process and fairness. It is not a stage for political drama or factional fights. It should be invoked only when truly necessary, and always in the service of the public good.”³²

23. In Lai v. People of the Philippines,³³ it was held that proceedings are not orchestrated plays in which the parties are supposed to make the motions and reach the denouement according to a **prepared script** and that litigants are entitled to a fair and impartial proceeding:

This Court has repeatedly and consistently demanded 'the cold neutrality of an impartial judge' as the indispensable imperative of due process. To bolster that requirement, we have held that **the judge must not only be impartial but must also appear to be impartial as an added assurance to the parties that his decision will be just. The litigants are entitled to no less than that. They should be sure that when their rights are violated they can go to a judge who shall give them justice. They must trust the judge, otherwise they will not go to him at all. They must believe in his sense of fairness, otherwise they will not seek his judgment. Without such confidence, there would be no point in invoking his action for the justice they expect.**

Due process is intended to insure that confidence by requiring compliance with what Justice Frankfurter calls the rudiments of fair play. Fair play calls for equal justice. **There cannot be equal justice where a suitor approaches a court already committed to the other party and with a judgment already made and waiting only to be formalized after the litigants shall have undergone the charade of a formal hearing. Judicial (and also extra-judicial) proceedings are not orchestrated plays in which the parties are supposed to make the motions and reach the denouement according to a prepared script. There is no writer to foreordain the ending. The judge will reach his conclusions only after all the evidence is in and all the arguments are filed, on the basis of the established facts and the pertinent law.** (emphasis added; citations omitted)

24. Compounding the constitutional infirmities of the Articles, members of the Committee on Justice openly declared in various media interviews their predetermined resolve to impeach the respondent well before the committee hearings had even commenced and concluded. These public declarations strip any pretense of impartiality of those who evaluated the Impeachment Complaints and expose the true

³⁰ 1987 Constitution, Article III, Section 1

³¹ *Lai*, *infra* at note 33

³² Duterte, *supra* at note 5

³³ G.R. No. 175999, July 1, 2015

character of the impeachment proceeding, in that, it is but a staged performance of a prejudged determination of the sufficiency of the complaints.

25. As early as February 21, 2026, Rep. Bienvenido Abante, Jr.,³⁴ the endorser of the Cabrera complaint and a member of the Committee on Justice proclaimed that he is “confident” that “the House of Representatives will secure enough votes to send the impeachment complaint against Vice President Sara Duterte to the Senate for the second time amid the new petitions filed against her.”³⁵ When asked “if the lower chamber has enough numbers to transmit the impeachment complaints against Duterte to the Senate to proceed with the impeachment trial,” he willingly avowed “[m]ore than enough, yes.”³⁶

26. Likewise, even before the committee hearings could commence, one of the committee members, Rep. Leila De Lima,³⁷ who is also a known critic of the respondent and the endorser of the Saballa complaint, made statements during the supposed deliberation on the sufficiency of form and substance of the impeachment complaints that revealed a prejudgment on the probative value and admissibility of the alleged pieces of evidence against the respondent.

27. According to her, the accusations contained in the Saballa complaint are purportedly *truthful* – “the Complaint states not just ultimate facts [...] *hindi po ito mga alegasyong imbento o haka-haka lamang*. They have been the subject of legislative inquiries, media scrutiny, and official documentation.”³⁸

28. Such a pronouncement by a member of the committee tasked to evaluate the Impeachment Complaints prematurely presumes the existence, authenticity, and credibility of purported materials and allegations in the Saballa complaint despite these having yet to be formally presented before this Honorable Court, authenticated, or subjected to rigorous examination.

29. By treating the allegations against the respondent as established truth even before trial begins, the Committee on Justice has in effect prejudged the evidentiary weight of supposed materials that, at this very point, have yet to be introduced before this Honorable Court.

30. Moreover, during the hearing on March 25, 2026, members of the Committee on Justice were the ones who actively moved to subpoena witnesses and documents to augment the impeachment complaints that were supposedly under evaluation.

³⁴ Hereafter, Rep. Abante

³⁵ Abante confident House will secure enough votes to impeach Sara Duterte, *Inquirer.net*, available at <https://newsinfo.inquirer.net/2184997/abante-confident-house-will-secure-enough-votes-to-impeach-sara-duterte> (last accessed May 25, 2026)

³⁶ *Id.*

³⁷ Hereafter, Rep. De Lima

³⁸ See LIVE: House Justice Panel resumes deliberations on impeachment cases vs. VP Sara Duterte, *INQUIRER.net*, available at <https://youtu.be/GzkueLurGoY?t=4557> (last accessed May 25, 2026)

31. Likewise, after said committee hearing, or on March 28, 2026, Vice Chairperson Rep. Ysabel Maria Zamora³⁹ already pronounced her “confidence” that the HOR has enough numbers to impeach the respondent:

At a news forum in Quezon City, Zamora was asked if she was confident that the House of Representatives has sufficient votes to transmit impeachment complaints against Duterte to the Senate so that the Vice President's trial would commence.

“We believe that we have the numbers. We need one-third or around 106 [votes] if I'm not mistaken. **We have the numbers,**” she said.⁴⁰ (emphasis added)

The video footage of the news forum where Zamora expressed these statements was uploaded in the YouTube account of the House of Representatives.⁴¹

32. It is thus alarming that members of the Committee on Justice saw fit to publicly announce that the HOR already had the numbers to impeach the respondent when the hearings have not yet begun and evaluation of the Impeachment Complaints has yet to be concluded.

33. Clearly, the Committee on Justice exceeded the bounds of its authority and usurped a constitutional authority that the Constitution did not vest in it with the intent to prejudge matters that can only be determined after supposed pieces of evidence have been established before the proper court and with the required degree of proof.

34. This congressional overreach goes against the spirit and principle of accountability that the HOR so loudly professes to champion, exposing a contradiction between its proclaimed ideals and the constitutionally repugnant manner in which it has conducted the impeachment proceedings.

35. As the Supreme Court said in Lai,⁴² litigants are entitled to no less than an assurance *the judge must not only be impartial but must also appear to be impartial as an added assurance to the parties that his decision will be just.*⁴³ **The litigants are entitled to no less than that.**⁴⁴ *They should be sure that when their rights are violated they can go to a judge who shall give them justice.*⁴⁵ *They must trust the judge, otherwise they will not go to him at all.*⁴⁶ **They must believe in his sense**

³⁹ Hereafter, Rep. Zamora

⁴⁰ House justice panel's Zamora on votes to impeach VP Sara: 'We have the numbers', GMA, available at <https://www.gmanetwork.com/news/topstories/nation/981723/house-votes-zamora-sara-duterte-impeachment/story/> (last accessed May 25, 2026)

⁴¹ SATURDAY NEWS FORUM (MARCH 28, 2026), House of Representatives, available at <https://www.youtube.com/watch?v=2FeY2TEa75A>, 44:33 to 44:37 (last accessed May 25, 2026)

⁴² Lai, *supra* at note 33, citing Javier v. Commission on Elections and Arturo Pacificador, G.R. Nos. L-68379-81, September 22, 1986

⁴³ *Id.*

⁴⁴ *Id.*

⁴⁵ *Id.*

⁴⁶ *Id.*

of fairness, otherwise they will not seek his judgment.⁴⁷ Without such confidence, there would be no point in invoking his action for the justice they expect.⁴⁸

36. Here, it cannot be disputed that the committee and its members were determined to impeach the respondent from the outset, and the supposed hearings were mere formalities to clothe an otherwise predetermined conclusion with the appearance of due process.

37. **The Committee on Justice conducted a constitutionally impermissible trial.** The Articles are the product of an unconstitutional usurpation of power that neither constitutionally belongs to the HOR nor its Committee on Justice. This procedural artifice of conducting a mini-trial where the apparent intent was to trawl for evidence against the respondent and interpreting them to systematically impugn her reputation before the general public, is a direct affront to the Constitution which exclusively vests the power to try an impeachment case solely in the Senate.

38. The Constitution provides that “[t]he Senate shall have the *sole power* to try and decide all cases of impeachment.”⁴⁹ “Sole” means the only one;⁵⁰ and “try,” in legal parlance, means the presentation, reception, and evaluation of evidence by a court possessed of jurisdiction to try a case. No other government body has the power to try impeachment cases. The HOR’s function is limited only to *initiating* impeachment cases.⁵¹

39. Yet here, the Committee on Justice conducted precisely what it is not authorized to do and which only the Senate acting as an impeachment court is empowered to do.

40. On March 18, 2026, the HOR issued a Press Release setting the “hearing proper” on March 25, April 14, April 22, and April 29, 2026 for supposed presentation of “evidence” and “witnesses”:

With the determination phase completed, the committee set the initial hearing dates on March 25, April 14, April 22, and April 29, 2026.

Luistro said the evidence and witnesses to be presented during the hearings will be considered in determining probable cause in the next stage of the proceedings.⁵²
(emphasis added)

⁴⁷ Lai, *supra* at note 33, citing Javier v. Commission on Elections and Arturo Pacificador, G.R. Nos. L-68379-81, September 22, 1986

⁴⁸ *Id.*

⁴⁹ 1987 Constitution, Article XI, Section 3 (6)

⁵⁰ Sole, Merriam-Webster, available at <https://www.merriam-webster.com/dictionary/sole> (last accessed May 25, 2026)

⁵¹ 1987 Constitution, Article XI, Section 3 (1)

⁵² House panel finds sufficient grounds vs VP Sara; impeachment hearings start March 25, House of Representatives, available at <https://www.congress.gov.ph/media/press-releases/view/?content=9692&title=House+panel+finds+sufficient+grounds+vs+VP+Sara%3B+impeachment+hearings+start+March+25> (last accessed May 25, 2026)

41. On the same day, with Committee on Justice Chairperson Rep. Gerville Luistro⁵³ proclaimed in a media interview that their intended hearings will be a “mini-trial” because according to her, “what is important is to give ample opportunity to the complainants to present their witness and evidence per ground.”

LUISTRO. **This will be a mini-trial**, should I say no? Because the full-blown trial will happen in the Senate. **What is important is to give ample opportunity to the complainants to present their witness and evidence per ground.** [...] The Answer of the respondent is not actually responsive to the allegations. **She will still be given ample opportunity to present her evidence after the complainant.** In addition also, the Rule is very clear that **only the Justice Members are allowed to conduct direct examination and cross-examination** which means that the parties may avail themselves of the services of lawyers, the participation of lawyers with respect to the proceeding before the Justice Committee is limited only to assisting their clients.

*** *** ***

It is incumbent upon the respondent to present her evidence so if the respondent is not interested to present her evidence, I don't think that there will be proper party to do that presentation in behalf of the Vice President.⁵⁴ (emphasis added)

42. Pursuant to this “mini-trial,” Letters⁵⁵ were sent to the Committee on Justice and the HOR through the Speaker, containing motions that request for *subpoena duces tecum* of purported evidence and adequate protection of Ramil Madriaga. She likewise repeated her position that the respondent’s counsel “are not allowed to participate yet in the proceeding before the Justice Committee,” emphasizing that direct examination and the cross-examination must be conducted by said committee’s members alone.⁵⁶

43. In another interview on March 20, 2026,⁵⁷ Rep. Luistro also declared that “*It should be the respondent herself presenting the evidence assisted by lawyers*”⁵⁸ and that “*committee members are supposed to examine the evidence and the witnesses which are being presented by the complainant on one hand and the respondent on the other hand.*”⁵⁹

⁵³ Hereafter, Luistro

⁵⁴ Mini bloodbath? Luistro says ‘hearing proper’ on VP Sara impeachment a ‘mini-trial’ | ABS-CBN News, ABS-CBN News, available at <https://www.youtube.com/watch?v=V0zT9VrAfgs> 0:15-1:55, 4:12-4:32

⁵⁵ Letters dated March 5, 2026 and March 17, 2026 of Rep. Jose Manuel Tadeo I. “Chel” Diokno to the Chairperson of the Committee on Justice and the House of Representatives thru its Speaker, Rep. Faustino “Bojie” De Guzman Dy III

⁵⁶ See Headstart: Rep. Gerville Luistro on what's next after VP impeach raps found 'sufficient in grounds', ANC 24/7, available at <https://www.youtube.com/watch?v=59YvCPGSvPM> (last accessed May 25, 2026)

⁵⁷ See Luistro: VP Sara must personally present evidence in impeachment case, Bilyonaryo News Channel, available at <https://bnc.bilyonaryo.com/luistro-vp-sara-must-personally-present-evidence-in-impeachment-case/news/> (last accessed May 25, 2026)

⁵⁸ *Id.*

⁵⁹ *Id.*

44. Another member of said committee, Rep. Terry L. Ridon,⁶⁰ also adverted to a trial-like process which further reveal the true nature of their "hearings:"

RIDON.Una. Nakalagay po sa Rules na mayroon pong karapatan mag-present ng ebidensya ang respondent. So the Vice President, in each and every ground, will be allowed to present her evidence against the evidence that will be presented by the complainants.⁶¹ (emphasis added)

45. In response to this attempt to set the stage for an unauthorized trial before the HOR, the respondent, through counsel, sent a Letter⁶² on even date to the Committee on Justice reminding its members that it has no jurisdiction to conduct any form of trial or exercise any of its incidents, and placed her objection on record to any requests, motions, or similar efforts aimed at obtaining or "fishing" for supposed evidence through processes that necessarily presuppose the existence of lawful authority and jurisdiction under the Constitution which, in this case, are absent.

46. Determined to conduct an unauthorized trial, the Committee on Justice then proceeded to craft supposed "Guidelines"⁶³ during its initial hearing on March 25, 2026, where its members also embarked on motions to subpoena witnesses. These guidelines purport to govern the committee rules on the "examination of witnesses," which were not published or approved by the plenary prior to the hearings:

7. Sa mismong pagdinig, ang mga resource persons ay **susuriin ng mga Miyembro ng Komite alinsunod sa Section 7 of the Rules of Procedure in Impeachment Proceedings**. Ang mga resource person ay hindi papayagang magsalita o gumawa ng mga interjection maliban kung, at hanggang sa, sila ay kilalanin ng Chairperson.

8. **Tanging ang mga Miyembro ng Komite lamang ang may karapatang suriin o i-cross-examine ang mga resource persons**. Ang mga partido ay maaaring humingi ng pahintulot mula sa Chairperson na magsumite ng mga tanong na itatanong ng Chairperson, kung sa kanyang opinion, ay kinakailangan ang mga ito para maging malinaw ang talakayan. (emphasis added)

47. According to the Committee Report No. 261,⁶⁴ the Committee on Justice likewise decided the sequence of the *reception of evidence*, another indicator of a trial proceeding:

During the same hearing, it was decided that the Committee adopt a sequence to discuss the grounds for impeachment as well as receive evidence for both *Complaints* jointly. The

⁶⁰ Hereafter, Ridon

⁶¹ Mini bloodbath? Luistro says 'hearing proper' on VP Sara impeachment a 'mini-trial' | ABS-CBN News, ABS-CBN News, available at <https://www.youtube.com/watch?v=V0zT9VrAfgs> 6:17-6:39 (last accessed May 25, 2026)

⁶² A copy of the Letter dated March 24, 2026 is attached as Annex 2

⁶³ A copy of the Guidelines is attached as Annex 3

⁶⁴ Committee Report No. 261, Legislative Documents, House of Representatives of the Philippines, available at https://docs.congress.hrep.online/legisdocs/first_20/CR00261.pdf and part of the transmitted documents by the HOR to this Honorable Court

proposal was made in consideration of the fact that both the *Saballa, et al.* and *Cabrera Complaints* alleged similar facts and grounds.⁶⁶ (Emphasis added)

48. The subsequent hearings held on April 14, 22, and 29, 2026 exposed the true nature of the committee proceedings. Those called to appear before it were dubbed as mere *resource persons* when, in substance, they were called to testify and produce purported documentary evidence pursuant to the compulsory process of subpoenas issued by the Committee on Justice. The proceedings therefore partook the nature of a trial, which only this Honorable Court is authorized to conduct under Section 3(6), Article XI of the Constitution.

49. Based on the same Committee Report No. 261, “a total of 22 resource persons appeared and testified⁶⁶ before the Committee during the said April hearings.”⁶⁷

APRIL 14	
1. Atty. Cynthia Pantonal	Notary Public
2. Ramil Madriaga	Former Supported of respondent Vice President Duterte
3. Marivic Pareja	Legislative Information Resources Management Department of the House of Representatives
4. Atty. Melvin Matibag	Director of the National Bureau of Investigation (NBI)
5. Carolyn J. Moldez-Pitoy	NBI Questioned Documents Division
6. Mr. Antonio Magbojos	NBI Questioned Documents Division
7. Marizza B. Grande	Assistant National Statistician, PSA
8. Atty. Gloria Camora	Commission on Audit – Intelligence and Confidential Funds Audit Office (COA-ICFAO)
9. Atty. Michael Poa	Former Chief of Staff of the Office of the Secretary of the Department of Education
APRIL 22	
1. Hon. Jesus Crispin Remulla	Ombudsman, Office of the Ombudsman
2. Atty. Karen Batu	OIC Central Records Division, Office of the Ombudsman
3. Atty. Ronel Buenaventura	Executive Director, Anti-Money Laundering Council
4. Antonio Trillanes IV	Former Senator
5. Atty. Gerardo F. Del Rosario	Director, Securities and Exchange Commission

⁶⁶ Committee Report No. 261, p. 13

⁶⁶ Id., page 3

⁶⁷ Id.

6. Atty. Charlito Martin Mendoza	Commissioner, Bureau of Internal Revenue
APRIL 29	
1. Atty. Melvin Matibag	Director, NBI
2. Agent John Mark Calilung	NBI, Cybercrime Division
3. SA Jeremy Lotoc	NBI, Cybercrime Division
4. Atty. Yentl Malicad	NBI
5. SRA Homer Angluben	NBI
6. Atty. Al Matthew Umali	NBI
7. Atty. Ria Vanessa Asuncion	NBI ⁶⁸

50. It is thus clear from the Committee Report No. 261, that the proceedings the Committee on Justice conducted were, by every intendment and result, a trial, where its members requested for issuance of subpoenas and were indeed issued. Likewise, witnesses were summoned by compulsory process, testimonies were taken, alleged evidence were produced, identified, and presented to the general public, and the entire procedure was governed by rules of procedure in the guise of some "Guidelines" that were never published nor approved by the plenary before the committee hearings.

51. Worse, the alleged documentary and testimonial evidence presented during the committee were not part of the Impeachment Complaints, including the purported Supplemental Affidavit of Ramil Madriaga, Affidavit of former Senator Antonio Trillanes, the supposed reports and data of alleged financial transactions submitted by the Anti-Money Laundering Council,⁶⁹ the NBI reports and testimonies,⁷⁰ and the Commission on Audit⁷¹ Decision.⁷² All these were obtained and considered by the Committee on Justice **after** the respondent already filed her Answer.⁷³

52. Equally telling is the Committee on Justice's consistent and deliberate use of the term "testimony" throughout its proceedings. The language employed by the Committee on Justice reveals how the proceedings were treated in substance. "Testimony" is a term firmly rooted in adversarial proceedings, which connotes the presentation of evidence before a tribunal clothed with jurisdiction to evaluate, weigh, and ultimately rule upon the evidence. The committee's repeated use of this term underscores the fact that it usurped an authority that the Constitution did not place in the HOR, let alone a mere committee.

53. In fact, the Articles stripped away any remaining pretense of the HOR and its Committee on Justice. In its penultimate portion, they declared their intent to present *additional* witnesses, documents, and other so-called evidence:

⁶⁸ Committee Report No. 261, pp. 3-4

⁶⁹ Hereafter, AMLC

⁷⁰ Articles of Impeachment, p. 5, Annexes RRRR and SSSS

⁷¹ Hereafter, COA

⁷² Articles of Impeachment, p. 3, Annex J

⁷³ The respondent's Answer Ad Cautelam dated March 13, 2026 submitted to the HOR is attached as **Annex 4**

The evidence on record established more than sufficient probable cause to impeach the Vice President. **Accordingly, the Impeachment Prosecutors intend to present additional witnesses, documents and other evidence as may be necessary or relevant to substantiate all the allegations herein, including the bank accounts and records of respondent and her spouse.** They likewise reserve the right to request the issuance of subpoenas to compel the attendance of witnesses and the production of documents and other relevant evidence.⁷⁴ (emphasis added)

54. Logically, a reservation to present *additional* witnesses under these circumstances implies that witnesses had indeed already been presented. This further implies that the proceeding conducted by the Committee on Justice was indeed a *trial* where evidence were received, regardless of any attempt to alter what in their own words plainly establishes as a "mini-trial."

55. **Articles of Impeachment include acts unrelated to respondent and her office.** The Articles include purported acts or omissions that were outside her present term as Vice President and supposedly committed during her tenure as Mayor and Vice Mayor of Davao City, which are non-impeachable offices.

56. However, in Duterte,⁷⁵ the Supreme Court reminded that "*the basis of any charge in impeachment proceedings must be for impeachable acts or omissions committed in relation to the office, and during the current term, of the impeachable officer.*"⁷⁶

57. In the Resolution of the same case, the Supreme Court stated that fairness and non-arbitrariness principles of due process **require** that "*the basis of any charge must be for impeachable acts or omissions committed in relation to their office and during the current term of the impeachable officer.*"⁷⁷

58. Yet, in defiance of those settled constitutional requirements of due process and non-arbitrariness, the charges in the Articles include records, documents, and alleged acts as early as 2007, or **before** the respondent even assumed her position as Vice President, and thus, outside her current term of an impeachable office.

59. At the committee hearing held on April 22, 2026, the Office of the Ombudsman submitted the respondent's SALNs for 2007 to 2012, 2013, and 2016 to 2022 in compliance with the Subpoena issued by the Committee on Justice:

MS. KAREN S. BATU (Officer-in-Charge, Central Records Division, Office of the Ombudsman): Good morning, Your Honor. Based po doon sa submission namin earlier before the proceedings, kasama po sa sinabmit (submit) namin earlier iyong

⁷⁴ Articles of Impeachment, p. 23

⁷⁵ Duterte, *supra* at note 5

⁷⁶ *Id.*

⁷⁷ Duterte, *supra* at note 23

2007 to 2012 SALN ng ating Vice President. May certification din po tayo na iyong subpoena po kasi ay...is from 2007 to 2013, 2016 to 2022... So, iyong 2015 po, hindi po kasama sa mga sina-subpoena sa Office of the Ombudsman. Ang kulang lang po sa mga sinabpoena (subpoena) namin. [...]

Sige po. Sorry po. Ulitin ko po, your honor. Mayroon po kaming sinabmit (submit) 2007 to 2012. Iyon pong mga SALN na iyon came from our office of the... area office from the Mindanao kasi sila po iyong repository or custodian ng SALN during the time na City Vice Mayor and Mayor po iyong ating Vice President. So, we requested pa po. So, kasama po iyon ngayon sa sinabmit (submit) namin. Nandoon po iyon sa submission namin before the proceedings.

REP. CHUA: Okay. Kasi ang mayroon lamang po dito is 2016 hanggang 2024.

MS. BATU: Kasama po iyon sa binigay po namin sa ComSec ngayon.

REP. CHUA: Okay. Anyway, with that, siguro magsisimula nalang ako magtanong from 2016 to 2024 dahil iyon lang mayroon akong record dito at hindi po sa aking naibigay ng...

THE CHAIRPERSON: If I may interrupt, Honorable Chua. ComSec, **please be directed to provide copy of the... copy of the SALN submitted by the OMB to the Justice Members... [...]** and later to the complainant and the respondent.⁷⁸ (emphasis added)

60. The Articles include data allegedly contained in the respondent's SALNs for the years 2007 to 2024, clearly inclusive of terms and prior offices that are non-impeachable.⁷⁹

61. Worse, the charges of alleged unexplained wealth in the Articles were not based on competent, relevant evidence, but on erroneous conclusions drawn by the Committee on Justice from documents pertaining to periods that fall outside the required impeachable-office-and-term standard set by the Supreme Court in Duterte.

62. In other words, the Committee on Justice recommended charges in the Articles by utilizing alleged information completely **unrelated** to any impeachable public office and term, in complete and deliberate disregard of controlling jurisprudence.

63. This same pattern pervades the allegations of purported impeachable offenses of political destabilization, high crimes, and sedition against the respondent. In disregard of the most basic principles of individual accountability, the Committee on

⁷⁸ Transcript of Stenographic Notes dated April 22, 2026, p. 13

⁷⁹ Articles of Impeachment, p. 12

Justice anchored their findings on and used political statements that were never made by the respondent.

64. Aside from the lack of any evidentiary value to support the charges in the Articles, a deliberate and conscious effort on the part of the HOR and its Committee on Justice to conjure impeachable offenses beyond what the fundamental law allows and violative of the basic tenets of due process, is apparent.

65. ***Supposed evidence outside the Impeachment Complaints were considered and evaluated through an intentional fishing expedition.*** The body of evidence relied upon by the Committee on Justice consists largely of evidence extraneous to the Saballa and Cabrera Complaints, produced and made available with questionable convenience during the course of the mini-trial and presented therein only after the respondent had already filed her Answer, thereby depriving her of any opportunity to confront and address them.

66. While none of these purported evidence formed part of the Impeachment Complaints supposedly under consideration, they were nonetheless systematically produced during the committee hearings.

67. In fact, Madriaga's Supplemental Affidavit was only adopted on the day of the hearing on April 14, 2026, when the respective sponsors of both Complaints, Rep. Abante and joined by Rep. De Lima, moved that it form part of said complaints.⁸⁰

68. Significantly, the convenient production of Madriaga's Supplemental Affidavit was done after the respondent was already made to file her Answer to the impeachment complaints. Note that the respondent was not furnished with a copy of Madriaga's supposed Supplemental Affidavit prior to its production and presentation and thus, was deprived of opportunity to address the same in her Answer.

69. This calculated intent to conduct a trawling excursion to obtain impermissible evidence and violate the respondent's right to due process is further made evident when a video⁸¹ purportedly attributed to the respondent was "inadvertently" flashed during the proceedings and subsequently treated as part of the Saballa complaint only after a motion was made by Rep. De Lima in her capacity as endorser of the same.⁸² The same however was not part of the Supplemental Affidavit nor of either of the two impeachment complaints, yet nevertheless admitted as "evidence."

70. The subsequent committee hearing conducted on April 22, 2026 revealed the continuing violations of the respondent's rights and of other individuals whose private data were publicly disclosed without their consent and in a wanton manner despite the fact that they are not the subject of the proceedings, such as the

⁸⁰ TSN – Committee on Justice dated April 14, 2026, p. 90

⁸¹ COMMITTEE ON JUSTICE (APRIL 14, 2026), available at <https://youtu.be/DxsaqoQzBMs?t=11228> 3:07:09 to 3:07:14 (last accessed May 25, 2026)

⁸² TSN – Committee on Justice dated April 14, 2026, pp. 69-71

purported Confidential Information Sharing on Atty. Manases Carpio⁸³ from the Anti-Money Laundering Council⁸⁴ and the personal details of the stockholders/directors of various corporations declared by respondent in her SALN found in the several General Information Sheets⁸⁵ brought by the SEC and obtained through subpoena issued by the Committee on Justice.

71. Again, none of these documents were furnished to the respondent prior to their public presentation during the hearing nor were any of them attached to the Impeachment Complaints that the respondent was made to answer. This deliberate omission shows the disregard for the constitutional rights of the respondent and of the fundamental guarantee that an individual be informed of the charges and evidence against him or her.

72. It is equally troubling that the Committee on Justice disclosed with reckless abandon confidential data of private individuals, without authority and in violation of existing laws on data privacy, bank secrecy, and AMLC disclosures.

73. The members of the Committee on Justice attempt to justify the unauthorized disclosure of confidential banking information by invoking the exception under the Bank Secrecy Law,⁸⁶ which supposedly includes "cases of impeachment" among the narrow exceptions to the rule of absolute confidentiality of bank deposits. This contention, however, is wrong.

74. The reason is simple: at the time of the questioned disclosures, no "impeachment case" existed and can exist at the level Committee on Justice precisely because its authority is limited to initiation of impeachment **proceedings**, and **not to try** an impeachment case.

75. In Francisco, Jr. v. House of Representatives, et al.,⁸⁷ the Supreme Court laid down the distinction between an "impeachment proceeding" and an "impeachment case:"

Following the principle of *reddendo singula sinuillis*, the term **"cases" must be distinguished from the term "proceedings."** An impeachment case is the legal controversy that must be decided by the Senate.⁸⁸ (emphasis added)

76. It is thus clear that an impeachment case, in the strict sense, commences only upon the transmittal or endorsement of the Articles of Impeachment to the Senate, which has the sole constitutional authority to try and decide the case. It

⁸³ See Articles of Impeachment, Annex DDDDDDDDD, pp. 6-15 (Confidential Information Sharing, AMLC Reference No. IF1_26_RQT-26-730475)

⁸⁴ Hereafter, AMLC

⁸⁵ Hereafter, GIS

⁸⁶ Republic Act No. 1405, Section 2

⁸⁷ G.R. No. 160261, November 10, 2003

⁸⁸ *Id.*

is only at that point that an "impeachment case" exists under the jurisdiction of the Senate sitting as an Impeachment Court:

"Initiate" of course is understood by ordinary men to mean, as dictionaries do, to begin, to commence, or set going. As Webster's Third New International Dictionary of the English Language concisely puts it, it means "to perform or facilitate the first action," which jibes with Justice Regalado's position, and that of Father Bernas, who elucidated during the oral arguments of the instant petitions on November 5, 2003 in this wise:

Briefly then, an impeachment proceeding is not a single act. It is a complexus of acts consisting of a beginning, a middle and an end. The end is the transmittal of the articles of impeachment to the Senate. The middle consists of those deliberative moments leading to the formulation of the articles of impeachment. The beginning or the initiation is the filing of the complaint and its referral to the Committee on Justice.

Father Bernas explains that in these two provisions, the common verb is "to initiate." The object in the first sentence is "impeachment case." The object in the second sentence is "impeachment proceeding." Following the principle of *reddendo singula sinuilibus*, the term "cases" must be distinguished from the term "proceedings." **An impeachment case is the legal controversy that must be decided by the Senate.** Above-quoted first provision provides that the House, by a vote of one-third of all its members, can bring a case to the Senate. It is in that sense that the House has "exclusive power" to initiate all cases of impeachment. No other body can do it. However, before a decision is made to initiate a case in the Senate, a "proceeding" must be followed to arrive at a conclusion. A proceeding must be "initiated." To initiate, which comes from the Latin word *initium*, means to begin. On the other hand, proceeding is a progressive noun. It has a beginning, a middle, and an end. It takes place not in the Senate but in the House and consists of several steps: (1) there is the filing of a verified complaint either by a Member of the House of Representatives or by a private citizen endorsed by a Member of the House of the Representatives; (2) there is the processing of this complaint by the proper Committee which may either reject the complaint or uphold it; (3) whether the resolution of the Committee rejects or upholds the complaint, the resolution must be forwarded to the House for further processing; and (4) there is the processing of the same complaint by the House of Representatives which either affirms a favorable resolution of the Committee or overrides a contrary resolution by a vote of one-third of all the members. If at least one third of all the Members upholds the complaint, Articles of Impeachment are prepared and transmitted to the Senate. It is at this point that the House "initiates an **impeachment case**." It is at this point that an impeachable public official is successfully impeached. **That is, he or she is successfully charged with an**

impeachment "case" before the Senate as impeachment court.⁸⁹ (Emphasis added)

77. From the foregoing, it is apparent that there can never be an "impeachment case" before the Committee on Justice as its only authority under the Constitution is to initiate an impeachment "proceeding," which the Supreme Court already declared is not equivalent to an impeachment "case" precisely because the latter is within the sole prerogative of the Senate to try.

78. Thus, at the committee level, no "impeachment case" can exist as no Articles have yet been approved and/or transmitted to the Senate. It is only upon such transmittal that a "case of impeachment" arises in its constitutional and statutory sense, with the Senate possessing the sole power to try and decide the same. Until then, only an impeachment proceeding can occur and exist at the level of the HOR.

79. Equally unavailing is the Committee on Justice's position that the AMLC may disclose such information on the ground that it is not among the "covered persons" prohibited from disclosing bank records.

80. The Anti-Money Laundering Act⁹⁰ prohibits AMLC and its Secretariat from disclosing information known to them by reason of their office:

SEC. 8-A. Information Security and Confidentiality. - The AMLC and its Secretariat shall securely protect information received or processed and **shall not reveal, in any manner, any information known to them by reason of their office.** This prohibition shall apply even after their separation from the AMLC. [...] ⁹¹ (emphasis added)

81. The AMLA provides for absolute prohibition. It imposes upon the AMLC and its Secretariat a direct and continuing obligation to **protect and not reveal**, in any manner, any information obtained by reason of their office. The language of the law thus reflects a legislative intent to ensure that financial intelligence information remains strictly confidential, except only in instances clearly sanctioned by law.

82. Likewise, the Committee on Justice itself denies that their proceedings constitute a trial. However, it cannot, on one hand, deny that a "case of impeachment" exists to insulate itself from constitutional constraints, while simultaneously invoking the very exception that presupposes the existence of such a case to justify the intrusion into confidential bank records.

83. By publicly presenting these extraneous evidence and conducting a one-sided "cross-examination," the Committee on Justice deprived the respondent of the basic requirements of due process and usurped the power to conduct trial,

⁸⁹ Francisco, Jr., *supra* at note 87

⁹⁰ Hereafter, AMLA

⁹¹ Republic Act No. 9160, as amended by Republic Act No. 11521, Section 8-A

designed not to evaluate the impeachment complaints, but to fish for evidence that does not exist in the first place.

84. In doing so, the Committee on Justice ceased to function as an impartial body and unlawfully assumed, without constitutional mandate, the conjoined roles of judge, prosecutor, and somehow, the executioner, all in one proceeding.

85. ***The Articles of Impeachment are the direct result of an impermissible fishing expedition.*** Having been obtained through constitutionally impermissible means, these alleged evidence must be excluded as fruit of the poisonous tree and thus cannot serve as bases for impeachment.

86. It must be emphasized that the proceedings before the Committee on Justice is the third time the members of the HOR hunted for evidence against the respondent; the first and second instances being the congressional hearings on the 2025 budget where she was asked about the utilization of confidential funds for the year 2022 and 2023, and the second was the supposed hearings "in aid of legislation" before the Committee on Good Governance and Public Accountability.⁹²

87. Thus, beneath the feigned procedural formalities and claims of due process compliance, the proceedings conducted by the Committee on Justice was, in substance and deliberate design, a *fishing expedition*. It was a furtive attempt to dramatically build an impeachment case against the respondent.

88. The basic principle that a fishing expedition betrays the absence of evidence necessary to establish probable cause is not a novel concept but a doctrine long settled by the Supreme Court in the landmark case of Stonehill v. Diokno,⁹³ where the Court observed:

Indeed, the non-exclusionary rule is contrary, not only to the letter, but also, to the spirit of the constitutional injunction against unreasonable searches and seizures. To be sure, if the applicant for a search warrant has competent evidence to establish probable cause of the commission of a given crime by the party against whom the warrant is intended, then there is no reason why the applicant should not comply with the requirements of the fundamental law. **Upon the other hand, if he has no such competent evidence, then it is not possible for the Judge to find that there is probable cause, and, hence, no justification for the issuance of the warrant. The only possible explanation (not justification) for its issuance is the necessity of fishing evidence of the commission of a crime. But, then, this fishing expedition is indicative of the absence of evidence to establish a probable cause.**⁹⁴ (emphasis added)

⁹² Hereafter, CGGPA

⁹³ G.R. No. L-19550, June 19, 1967

⁹⁴ Stonehill, *supra* at note 94

89. Here, it will be recalled that the Committee on Justice claims that its proceeding is allegedly akin to a preliminary investigation. Yet, the Committee on Justice conducted a proceeding where it actively sought additional testimonial and documentary evidence, which implies that the Saballa and Cabrera complaints, as originally filed, were not supported by sufficient evidence which will establish probable cause for any impeachable offense.

90. ***Grave constitutional issues pending before the Supreme Court.*** At present, constitutional issues relative to the impeachment proceedings and consequently, this impeachment case, are pending before the Supreme Court in G.R. No. E-05667. Said Petition raises constitutional questions that fundamentally affect the foundation of the Articles, as well as the jurisdiction of this Honorable Court.

91. In that Petition, the respondent raised the fatal defect in the referral process of the four Impeachment Complaints against her. Under settled jurisprudence, it is the HOR, acting in plenary and as a collective body, which should perform the constitutional task of referral of an impeachment complaint to the proper Committee within three session days from its inclusion in the Order of Business, and not a mere committee or any of its officers. This is clear from the ruling of the Supreme Court in Gutierrez:

[...] **Far from being mechanical, before the referral stage, a period of deliberation is afforded the House**, as the Constitution, in fact, grants a maximum of three session days within which to make the proper referral.⁹⁵ (emphasis added)

92. The importance of this constitutional task of referral to the proper committee reposed in the HOR itself and not in any of its members alone is further emphasized in the Court's ruling in Duterte.⁹⁶

The Constitution did not place the power of the "final say" on the lips of the House Secretary General who would otherwise be calling the shots in forwarding or freezing any impeachment complaint. ***Referral of the complaint to the proper committee is not done by the House Speaker alone either, which explains why there is a need to include it in the Order of Business of the House. It is the House of Representatives, in public plenary session, which has the power to set its own chamber into special operation by referring the complaint or to otherwise guard against the initiation of a second impeachment proceeding by rejecting a patently unconstitutional complaint.***⁹⁷ (emphasis added)

⁹⁵ Gutierrez, *supra* at note 10

⁹⁶ Duterte, *supra* at note 5

⁹⁷ See Duterte, *supra* at note 5

93. It is therefore plain that only the HOR, acting as a collective body in plenary session, can cause the proper transmittal of the impeachment complaints. No other person, entity, or committee is permitted by the Constitution to do this.

94. Here, the referral of the four impeachment complaints was not done by the HOR acting as a collective body in a public plenary session, but either by a mere committee or the Speaker alone.

95. Records and the video⁹⁸ of the February 23, 2026 plenary session of the HOR show that **no such deliberation by the HOR as a collective body was conducted prior to the referral**. Instead, the Additional Reference of Business concerning the four impeachment complaints was merely read, followed by a perfunctory striking of the gavel. Neither was there any voting done among the members of the House.

96. The House Bills/Resolutions⁹⁹ on these four impeachment complaints likewise indicate that it was the Committee on Rules that performed the act of referral to the Committee on Justice, and not the HOR, in violation of Section 3(2), Article XI of the Constitution and prevailing jurisprudence, which vest the authority to refer impeachment complaints in the HOR, acting as a collective body in a public plenary session, and not in any of its committees, members, or officers.

97. This fatal defect in the referral process is evident on the face of the Letter-Referral dated February 23, 2026 addressed to Rep. Luistro signed by its Deputy Secretary General. The Letter-Referral expressly states that the four impeachment complaints *were referred by the Speaker to the Committee on Justice on even date*.

98. Second, the Articles, whose foundation rest on the Saballa and Cabrera complaints, are proscribed by the One-Year Bar Rule.

99. The Constitution provides that "[n]o impeachment proceedings shall be initiated against the same official more than once within a period of one year."¹⁰⁰ As discussed in Duterte, this constitutional bar ensures that impeachable officers are not unduly disrupted or harassed in performing their duties.¹⁰¹

100. In determining the reckoning period of the One-Year Bar Rule, the Supreme Court explained that *a nuanced approach is warranted to remain faithful to*

⁹⁸ See LIVE | House of Representatives regular session (February 23, 2026) available at <https://www.youtube.com/watch?v=fv1FxUT4Qew&t=621s> (last accessed May 25, 2026)

⁹⁹ House Bill/Resolution on the Castro Complaint (1st Impeachment Complaint), available at congress.gov.ph/legislative-documents/ (last accessed May 25, 2026); House Bill/Resolution on the Dee Complaint (2nd Impeachment Complaint), available at congress.gov.ph/legislative-documents/ (last accessed May 25, 2026); House Bill/Resolution on the Saballa Complaint (3rd Impeachment Complaint), available at congress.gov.ph/legislative-documents/ (last accessed May 25, 2026); House Bill/Resolution on the Cabrera Complaint (4th Impeachment Complaint), available at congress.gov.ph/legislative-documents/ (last accessed May 25, 2026)

¹⁰⁰ 1987 Constitution, Article XI, Section 3 (5)

¹⁰¹ Duterte, *supra* at note 5

*its purpose*¹⁰² and that it should be reckoned from the initiation of the impeachment complaint when it was dismissed or partially acted upon.

101. Here, the Committee on Justice first approved the withdrawal of the Dee complaint upon the request of the complainants and its endorsing representatives.

102. Even at this point, the withdrawal of the Dee complaint should have precluded any further proceedings on the remaining impeachment complaints. This withdrawal of the Dee Complaint squarely falls within the ambit of the non-viability circumstance contemplated in Duterte that will trigger the One-Year Bar Rule.

103. Under these circumstances, acting on and sustaining the Saballa and Cabrera complaints render the proceedings before the Committee on Justice unconstitutional. The public broadcast of the proceedings conducted by the Committee on Justice shows that the Castro and Dee Complaints were (a) initiated upon their referral to the Committee on Justice, albeit defective, (b) partially acted upon since there were proceedings that caused the withdrawal of the Dee Complaint and distinct proceedings pertaining to the deliberations on and setting aside of the Castro Complaint for violation of the One-Year Bar rule, and (c) effectively terminated by confirmation of the withdrawal and through voting by the Committee members.

104. Hence, a fresh application of the One-Year Bar was triggered on March 2, 2026, the date when the Castro and Dee Complaints were respectively set aside and withdrawn. All these actions done in sequence show that multiple impeachment proceedings were initiated against the respondent within a one-year period – an act clearly proscribed under Section 3(5), Article XI of the Constitution.

105. Third, the Saballa and Cabrera complaints, upon which the entire proceedings before the Committee on Justice and the Articles are based, do not contain a recital of ultimate facts.

106. It is basic that a complaint must state only ultimate facts. This rule is embodied in Section 1, Rule 8 of the 2019 Revised Rules on Civil Procedure:

SECTION 1. *In general.* – Every pleading shall contain in a methodical and logical form, a plain, concise and direct statement of the **ultimate facts**, including the evidence on which the party pleading relies for his or her claim or defense, as the case may be.¹⁰³ (emphasis added)

107. Section 5, Rule III of the Rules of Procedure in Impeachment Proceedings in the HOR requires the recital of ultimate facts:

Section 5. Determination of Sufficiency in Substance. – Should the committee find the complaint sufficient in form, it **shall** then determine if the complaint is sufficient in substance. The

¹⁰² Duterte, *supra* at note 5

¹⁰³ Revised Rules on Civil Procedure, Rule 8, Section 1

requirement of substance is met if there is a recital of facts constituting the offense charged and determinative of the jurisdiction of the committee. **If the committee finds that the complaint is not sufficient in substance, it shall dismiss the complaint and submit its report as provided hereunder.**¹⁰⁴ (emphasis added)

108. Neither the Saballa nor Cabrera Complaints allege the essential or ultimate facts necessary to sustain the charges contained in the Articles. What abounds therein instead are bare conclusions of fact and law, laden with self-serving conjectures, logical fallacies, and speculations, none of which can substitute for clear statement of ultimate facts required to support an impeachment complaint.

109. It is also basic that jurisdiction over a subject matter is conferred by the Constitution or the law.¹⁰⁵ Article XI, Section 3(6) of the Constitution clothes the Senate with the sole power to try and decide all cases of impeachment. The HOR simply has no power or authority to conduct any form of trial, let alone augment what otherwise were deficient impeachment complaints through production of “additional” evidence.

110. **No impeachable offenses.** Even assuming *arguendo* that this Honorable Court disregards the constitutional issues pervading the Articles above, the same must still be dismissed.

111. Under Section 2, Article XI of the Constitution, impeachment must be grounded on:

SECTION 2. The President, the Vice-President, the Members of the Supreme Court, the Members of the Constitutional Commissions, and the Ombudsman may be removed from office, on impeachment for, and conviction of, **culpable violation of the Constitution, treason, bribery, graft and corruption, other high crimes, or betrayal of public trust.** All other public officers and employees may be removed from office as provided by law, but not by impeachment.¹⁰⁶ (emphasis added)

112. In Duterte, the Supreme Court ruled that decisions regarding whether to file Articles of Impeachment, or to acquit or convict must be based upon clear charges supported by clear and convincing evidence.¹⁰⁷ Thus, the impeachable offenses of (a) culpable violation of the Constitution, (b) treason, (c) bribery, (d) graft and corruption, (e) other high crimes, or (f) betrayal of public trust must all meet this standard.

113. The Articles accuse the respondent of:

- a. Culpable violation of the Constitution, graft and corruption, and betrayal of public trust through the

¹⁰⁴ Adopted, May 30, 2023; Published, June 2, 2023

¹⁰⁵ Government Service Insurance System vs. Daymiel, G.R. No. 218097, March 11, 2019

¹⁰⁶ Section 2, Article XI, 1987 Constitution

¹⁰⁷ Duterte, *supra* at note 3, p. 43

systematic misuse, misappropriation, and irregular liquidation of confidential funds released to the Office of the Vice President and Department of Education;¹⁰⁸

- b. Culpable violation of the Constitution and betrayal of public trust when she amassed unexplained wealth, failed to fully and truthfully disclose her and her spouse's assets, liabilities, and net worth, and failure to divest and willfully continued with all her business interests during her tenure as Vice President;¹⁰⁹
- c. Bribery, graft and corruption, culpable violation of the Constitution, and betrayal of public trust when she gave monetary gifts or payments to DepEd officials to induce violation of procurement and other laws;¹¹⁰ and
- d. Culpable violation of the Constitution, high crimes, and betrayal of public trust by contracting for the assassination of the President, the First Lady, and the former Speaker of the House of Representatives by making grave threats and actively inciting sedition against the Republic.¹¹¹

114. The allegations in the Articles, however, and the alleged evidence that purport to support them, do not constitute any impeachable offenses.

Article I

115. The foregoing allegations are repleaded herein by reference.

116. **No culpable violation of the Constitution.** The respondent did not commit any culpable violation of the Constitution in connection with the confidential funds expenditures of the Office of the Vice President and the Department of Education.

117. Culpable violation of the Constitution demands something grave, willful, intentional, and deliberate breach of a constitutional duty. It thus should be understood to mean willful and intentional violation of the Constitution and not violations thereof that are committed unintentionally or involuntarily or in good faith or through honest mistake of judgment.¹¹² Thus, the act must be deliberate and motivated by bad faith to constitute a ground for impeachment. Mere mistakes on the construction of the

¹⁰⁸ Articles of Impeachment, p. 2

¹⁰⁹ *Id.*, p. 7

¹¹⁰ *Id.*, p. 16

¹¹¹ *Id.*, p. 18

¹¹² See Joaquin G. Bernas, S.J., *The 1987 Constitution of the Republic of the Philippines, A Commentary*, p. 1152 (2009 Edition)

Constitution thus cannot be considered a valid ground for impeachment.¹¹³ An unintentional act, however erroneous, does not rise to the level of an impeachable offense.

118. An examination of Article I reveals no substantial allegations of facts showing that the respondent violated any provision of the Constitution. The entirety of said Article rests solely upon Notices of Disallowances¹¹⁴ issued by the Commission on Audit, which are not yet final. Thus, any allegations premised on these NDs cannot be made to support a charge for culpable violation of the Constitution.

119. Even the purported documentary evidence used by the prosecutors to support this alleged impeachable offense point to the regular release and utilization of confidential funds; thus, dispelling the prosecution's insistence that the respondent committed an impeachable offense through the alleged misuse of confidential funds.

120. **No graft and corruption.** Neither is there any showing that the respondent committed graft and corruption in relation to the use of confidential funds allocated to the Office of the Vice President and the Department of Education.

121. As a ground for impeachment, allegations of graft and corruption must be measured against their definitions under Anti-Graft and Corrupt Practices Act.¹¹⁵ To constitute as an impeachable offense, the supposed conduct must be sufficiently alleged and proven to rise to a level of gravity with the other constitutional grounds for impeachment.

122. Under settled jurisprudence, *graft* is "the fraudulent obtaining of public money unlawfully by the corruption of public officers. It also refers to advantage or personal gain received because of the peculiar position or superior influence of one holding a position of trust and confidence without rendering compensatory services or dishonesty transaction in relation to public or official acts;"¹¹⁶ while *corruption* is defined as the act of an official or fiduciary person who unlawfully and wrongfully uses his station or charter to procure some benefit for himself or for another person, contrary to duty and the rights of others. It pertains to an act done with an intent to give some advantage inconsistent with official duty and the rights of others.¹¹⁷

123. Here, even the most basic elements of graft and corruption as defined above are entirely **absent**. In the first place, the allegation of graft and corruption cannot be sustained because the confidential funds were lawfully obtained upon the

¹¹³ See Isagani A. Cruz and Carlo L. Cruz, *Philippine Political Law*, p. 738 (2014 Edition)

¹¹⁴ Hereafter, ND

¹¹⁵ Republic Act No. 3019, Section 3

¹¹⁶ Soriano v. People of the Philippines, G.R. No. 238232, April 26, 2022

¹¹⁷ Id.

recommendation of the Department of Budget and Management and approval of the Office of the President.¹¹⁸

124. Neither is there any personal gain which accrued in favor of the respondent. There is complete absence of any allegations in the Articles, much less proof, that respondent appropriated the confidential funds for her own benefit. It is basic that unwarranted conclusions, speculations, suspicions, and surmises cannot substitute for proof.

125. Even as a matter of record, the NDs issued by the COA contains no findings of any misuse or misappropriation of confidential funds by the respondent.

126. In fact, the allegations of misuse of confidential funds as foundation of the charge for graft and corruption have been directly refuted by the COA witness summoned by the Committee on Justice itself.

127. During her cross-examination by Rep. De Lima on April 14, 2026, Atty. Gloria Camora of the COA-Intelligence and Confidential Funds Office (COA-ICFAO) **categorically stated that there was no such finding of misuse even in the COA Decision** that was produced in seemingly perfect timing with the first day of the committee hearings. The exchange speaks for itself:

De Lima: Tama rin po ba ang isipin na kapag sinabing fail to comply with the requirements. Or the um. Yes, the requirements of the joint circular is there is a misuse of the confidential funds. Kasi tamang paggamit. **So kung hindi tama yung paggamit, then there's misuse of the confidential funds. Tama po bang interpretation na yan?**

Atty. Camora: [7:53:51] **There is no such indication dito sa joint, uh sa decision po. It's just that hindi po nag-comply with the joint circular.**¹¹⁹ (emphasis added; see footnote for link of the media coverage of the April 14, 2026 hearing of the Committee on Justice)

128. This fact on record drawn from the prosecution's own witness alone shows that the entire allegations of graft and corruption and misuse of confidential funds are not only strained conclusions by the members of the Committee on Justice but were borne out of pure bias against the respondent.

129. The brandishing of said COA Decision during the hearing on April 14, 2026 appears to have been timed well and conveniently produced, and even before the respondent and the other appellants in that COA Appeal could have received an official copy of the COA Decision on April 22, 2026. It is also interesting that this COA

¹¹⁸ Copies of the Memorandum for the President re: Office of the Vice-President (OVP) – Release of Funds for Additional Requirements for FY 2022; and Memorandum from the Executive Secretary re: OVP – Release of Funds for Additional Requirements for FY 2022 are attached as **Annexes 5** and **6**

¹¹⁹ See, Committee on Justice April 14, 2026, Congress TV Digital, available at <https://youtu.be/SIRYdXZkxI4?t=27770> 7:42:50 to 7:43:25 (last accessed May 25, 2026)

Decision was promulgated on April 10, 2026, just four days before Atty. Camora attended the April 14, 2026 hearing. The choreography was so precise and the timing so perfect to be dismissed as a mere coincidence.

130. The totality of these circumstances creates the impression that the impeachment proceedings that gave rise to the Articles were but an orchestrated performance designed to build an impeachment case against the respondent and impugn her reputation even before trial.

131. In addition, contrary to the misrepresentation in the Articles that the disallowance has been upheld with finality,¹²⁰ the respondent puts on record that said COA Decision is **not final** and thus, cannot constitute as proof of any impeachable offense on her part.

132. In fact, the respondent and the other appellants therein have available legal remedies to question that decision and ultimately, before the Supreme Court. As of date, a Motion for Reconsideration¹²¹ was timely filed by the respondent and her co-appellants with the COA *En Banc*. The presence of a remedy for the disallowance was confirmed by the Committee on Justice's own witness, Atty. Gloria A. Camora:

REP. ABANTE. Okay. Pero kinakailangan pa nilang sagutin by an appeal, right? Then, afterwards, afterwards, kinakailangan nangibalik kung, halimbawa, iyong appeal nilang ginawa, eh, dinenay (deny) niyo na naman. Correct?

MS. CAMORA. Yes, Madam Chair.

REP. ABANTE. Eh, ano iyong timeline ng pagsauli ng mga pera...

MS. CAMORA. Madam Chair...

REP. ABANTE. ...after the last appeal? Last appeal na ba iyon, iyong i-appeal nila? Is that the last appeal?

MS. CAMORA. They have...they can resort po to...

REP. ABANTE. Ha?

MS. CAMORA. They can resort po to the courts.

REP. ABANTE. Ano iyon, it's a continuing appeal? Ganoon ba iyon?

MS. CAMORA. No, it's not a continuing appeal po.

REP. ABANTE. Ano iyon?

MS. CAMORA. Sa Supreme Court na po, petition for...

¹²⁰ Articles of Impeachment, p. 4

¹²¹ Motion for Reconsideration dated May 18, 2026, attached as **Annex 7**

REP. ABANTE. So, Supreme Court na. So, hindi kayo pupunta ng Ombudsman para idemanda na? Ganoon?

MS. CAMORA. No, Madam Chair.

REP. ABANTE. Supreme...kayo mismo ang pupunta ng Supreme Court o sila?

MS. CAMORA. Sila po. Sila po ang mag...¹²²

133. Under the circumstances where efforts to impeach the respondent have been relentless for the second consecutive year now, a denial of that Motion for Reconsideration does not ripen the COA Decision into a final judgment as she can still elevate any such denial to the Supreme Court via Rule 65 in relation to Rule 64 of the Rules of Court.

134. Neither does the so-called crying testimony of Ramil Madriaga¹²³ nor of his two alleged affidavits carry any persuasive nor probative value. The glaring inconsistencies in his testimony coupled with emotional performance of a person whom news reports¹²⁴ tag as the leader of a notorious kidnap-for-ransom gang "deemed to be 'one of the most dangerous criminal syndicates in recent history'"¹²⁵ certainly do not establish any impeachable offenses for which the respondent may be held liable.

135. It is a legal truism that evidence to be believed and considered must not only proceed from the mouth of a credible witness, but must be credible in itself.¹²⁶ No better test has yet been found to measure the value of a witness' testimony than its conformity to the knowledge and common experience of mankind.¹²⁷

136. Here, Madriaga himself admitted in the last paragraph of his Supplemental Affidavit¹²⁸ that he bears a grudge against the respondent for supposedly failing to come to his aid in relation to the kidnapping-for-ransom case that he is now detained for:

80. More importantly, I felt betrayed that despite all my efforts to support Sara – to the extent of even committing high-risk acts for her and her family, she did not lift a finger to stop Atty. Roque, who is her known ally and supporter, from filing the unfounded kidnapping case against me.¹²⁹

¹²² TSN – Committee on Justice dated April 14, 2026, p. 189-191

¹²³ Hereafter, Madriaga

¹²⁴ PNP arrests leader, members of notorious kidnap-for-ransom gang in Rizal, INQUIRER.net, <https://newsinfo.inquirer.net/1801431/alleged-leader-members-of-one-of-most-dangerous-kidnapransom-group-arrested> (last accessed May 25, 2026), attached as **Annex 8**

¹²⁵ *Id.*

¹²⁶ See *People of the Philippines vs. Milo Leocadio y Labrador*, G.R. No. 227396, February 22, 2023

¹²⁷ *Id.*

¹²⁸ Supplemental Affidavit dated April 11, 2026; see also Articles of Impeachment, Annex WWW (Supplemental Affidavit) Impeachment

¹²⁹ *Id.*

137. The outright lies that Madriaga peddled in his two affidavits, which the Committee on Justice took hook, line, and sinker, are apparent on the face of his sworn statements. These lies are now the subject of a perjury complaint filed against him by the respondent on March 4, 2026 before the Office of the City Prosecutor of Taguig City.¹³⁰

138. Likewise, the prosecution used the supposed records of hearings before the CGGPA the very first orchestrated "hearing" against the respondent in 2024 as a prelude to its failed 2025 impeachment effort.

139. What the Articles of Impeachment however failed to allege is that those records are replete with all badges of intimidation of witnesses through compulsion of testimonies, misleading questions, refusal to accept the witness' answers that do not conform to their desired response, and worse, threats to cite them in contempt, which they actually did to the respondent's Chief of Staff, Atty. Zuleika T. Lopez.¹³¹

140. Those supposed records of the CGGPA hearings certainly do not contain reliable "findings" of liabilities on the part of the respondent since at the time of those hearings and to date, the supposed COA observations have not yet attained finality.

141. Those hearings were in every sense a public display of modern-day persecution and wielding of power by those who controlled those hearings, a number of those are still the same members of the Congress who sat in proceedings this year before the Committee on Justice.

142. Certainly, a supposed "record" produced through fear, coercion, and suppression of honest testimony is not evidence. Rather, it is a testament to the lengths that the respondents' accusers are willing to take to indict her. If at all, when her accusers resort to intimidation and threats to build their case, the same demonstrably indicates the plain absence of any genuine, competent, and credible evidence against the respondent.

143. The Articles also rely on the purported fabrications allegedly uncovered by the National Bureau of Investigation¹³² on the documents evidencing payment (DEPs) and supposedly compounded by the certifications issued by the Philippine Statistics Authority,¹³³ which are conjectural at best, and mere conclusions.

144. These supposed findings betray a total failure to understand the very nature of confidential expenses and activities, which under the Joint Circular, are classified, pertaining or related to surveillance activities in civilian government agencies that are intended to support the mandate or operations of the agency.¹³⁴

¹³⁰ Complaint-Affidavit dated March 4, 2026, attached as Annex 9

¹³¹ Hereafter, Atty. Lopez

¹³² Hereafter, NBI

¹³³ Hereafter, PSA

¹³⁴ Joint Circular No. 2015-01 dated January 8, 2015, par. 3.9

145. Simply put, confidential operations and expenditures, by their very nature and the legal framework governing them, are not subject to ordinary documentary requirements applicable to regular and non-confidential government transactions. Yet here, both the NBI and the PSA allowed themselves to be conscripted into a predetermined narrative designed to float supposedly adverse findings on the transactions in connection with the confidential operations of the OVP and DepEd.

146. Worse, the treatment by the Committee on Justice on the Letter¹³⁵ written by Atty. Zuleika T. Lopez¹³⁶ is a distortion of its true import. In truth, the Letter did nothing more than set forth the legal bases of the OVP's position in respect of the Subpoena issued to the COA given that the audit was still ongoing at that time and the confidentiality of those records. The Letter dated August 21, 2024 reads as:

Dear **Chairman Cordoba**,

We write to you in relation to the *Subpoena Duces Tecum* recently issued by Committee on Appropriations of the House of Representatives directing the Honorable Commission to submit all pertinent documents pertaining to the audit of the 2022 and 2023 Confidential Funds of the Office of the Vice President (OVP) and the Department of Education (DepEd).

We are of the position that the subject Subpoena should not be complied with for the following reasons:

I. The subject subpoena violates the Constitutional Principle of Separation of Powers.

*** *** ***

II. The enforcement of the subject subpoena will violate the Office of the Vice President's right to due process.

*** *** ***

III. The subject subpoena may not be validly enforced due to the nature of confidential funds.

In view of the foregoing, we respectfully urge the Honorable Commission to uphold the paramount confidentiality of the information being sought by the Subpoena. (Emphasis in the original)

147. Moreover, it was clearly an exercise of an honest discretion and good faith intention to invoke and uphold relevant legal principles and provisions of law, which every lawyer is duty-bound to do.¹³⁷

¹³⁵ Letter dated August 21, 2024, attached as Annex 10

¹³⁶ Hereafter, Atty. Lopez

¹³⁷ See Code of Professional Responsibility and Accountability, Canon III – Fidelity, which states "[f]idelity pertains to a lawyer's duty to uphold the Constitution and the laws of the land, to assist in the administration of justice as an officer of

148. **No betrayal of public trust.** Under these circumstances, there is likewise no betrayal of public trust attributable to the respondent. While betrayal of public trust as a ground for impeachment may cover all manner of offenses unbecoming of a public functionary but not punishable by the criminal statutes, like "inexcusable negligence, tyrannical abuse of authority, breach of official duty by malfeasance or, misfeasance, cronyism, favoritism, obstruction of justice,"¹³⁸ nothing in the Articles allege any specific such acts or omissions within the ambit of this ground.

149. Betrayal of public trust cannot be treated as a *carte blanche* ground for impeachment but should be limited to the most serious nature, otherwise it would subject impeachable officers to frivolous charges. As shown above, the charges against the respondent are precisely the kind of accusations that this limitation was designed to guard against. The allegations in the Articles simply do not rise to the level of this impeachable offense.

Article II

150. The foregoing allegations are pleaded herein by reference.

151. **No culpable violation of the Constitution.** The Articles allege that the respondent amassed wealth manifestly disproportionate to her lawful income and earnings, failed to fully and truthfully disclose all her assets, liabilities, and net worth, and failed to divest her business interests. It is claimed that these violate the Constitution's requirement for public officials to disclose their assets, liabilities, and net worth.

152. These are, however, not statements of ultimate facts but of bare conclusions. Even more absurd is the allegation in the Articles that discussed respondent's SALNs pertaining to non-impeachable offices¹³⁹ when she served as Vice Mayor of Davao City from 2007 to 2009, and subsequently, as Mayor of Davao City from 2010 to 2021,¹⁴⁰ in an attempt to support the accusations of supposed unexplained wealth of the respondent.

153. Moreover, assets and net worth of her spouse, Atty. Manases Carpio,¹⁴¹ who is a private citizen and thus, not an impeachable official, were likewise lumped with the respondent's supposed unexplained wealth to bloat her total net worth in an

the court, and to advance or defend a client's cause, with full devotion, genuine interest, and zeal in the pursuit of truth and justice."

¹³⁸ See Emilio A. Gonzales III v. Office of the President, G.R. No. 196231, September 4, 2012

¹³⁹ Section 2, Article XI of the Constitution provides:

Section 2. The President, the Vice-President, the Members of the Supreme Court, the Members of the Constitutional Commissions, and the Ombudsman may be removed from office on impeachment for, and conviction of, culpable violation of the Constitution, treason, bribery, graft and corruption, other high crimes, or betrayal of public trust. All other public officers and employees may be removed from office as provided by law, but not by impeachment.

¹⁴⁰ Articles of Impeachment, Annexes KKKKKKKK to VVVVVVVV

obvious attempt to maliciously pin, the legitimate accumulation of wealth of the spouses, with a badge of fraud and duplicity when there is clearly none.

154. Driven by its desire to impeach the respondent and generate adverse public opinion against her even before this case could even reach this Impeachment Court, the prosecution used purported AMLC reports on supposed covered transactions and suspicious transactions on the respondent and her spouse to paint a false financial picture.

155. This deliberate attempt to manufacture an illusion of supposed staggering, unexplained wealth where none actually exists, by deliberately conjuring a bloated amount of purported total transactions and without the proper interpretation of these alleged data is simply reckless, irresponsible, and goes against the principles of accountability that the respondent's accusers purport to champion.

156. Yet, both the Committee on Justice and the Articles omitted to explain the legal concepts of covered and suspicious transactions. A covered transaction is defined as "a transaction in cash or other equivalent monetary instrument involving a total amount in excess of Five hundred thousand pesos (P500,000.00) within one (1) banking day;"¹⁴² while suspicious transactions are those transactions with covered institutions, regardless of the amounts involved," where certain circumstances are involved.¹⁴³

157. By their definition alone, assuming *arguendo* that the AMLC reports were accurate, the Articles nonetheless failed to allege any supposed "unexplained wealth" on the part of the respondent, precisely because even at this point, they could not specify nor prove any.

158. Even the AMLC Director who appeared before the Committee on Justice hearing on April 22, 2026 did not point out to any supposed violations of law committed by the respondent in relation to those purported transactions. What is clear is that the respondent was **not investigated or prosecuted** for any violation of the AMLA. In fact, a perusal of the reports shows that the bases for those alleged reports were the supposed hearings conducted by the QuadComm in 2024.

159. Assuming further without conceding that the inflow and outflow transactions presented by AMLC are correct, the same were obviously intentionally misrepresented and taken out of context to paint a false picture of the respondent's and her spouse's finances. Considering too that the disclosure by the AMLC of these supposed data is prohibited under the law, the respondent maintains her objection to the use of those reports and reserves her right to challenge it at the proper time.

160. Neither can the false claims of former Senator Antonio Trillanes IV¹⁴⁴ be given any probative value. By the very nature of his supposed testimony, Trillanes

¹⁴² Anti-Money Laundering Act, as amended, Section 3 (b)

¹⁴³ *Id.*, Section 3 (b-1)

¹⁴⁴ Hereafter, Trillanes

manifestly lacks any personal knowledge that basic evidentiary rules demand from a witness. His incredible claims have already been denied in an official statement by the AMLC itself in 2017, which disavowal still exists to this day at the AMLC's official website:

The Anti-Money Laundering Council Secretariat received on 06 September 2017 the 17 August 2017 letter of Overall Deputy Ombudsman Melchor Arthur Carandang, requesting it to initiate investigation on subject accounts.

We have categorically stated before that the Anti-Money Laundering Council (AMLC) is not the source of the documents and information attached by Senator Antonio F. Trillanes IV in his Complaint, regarding the alleged bank accounts of President Rodrigo Duterte. It has neither provided the Office of the Ombudsman with any report as a consequence of any investigation of subject accounts for any purpose.

We have yet to evaluate the request, and the initiation of an investigation, as well as the release of any report on the subject will depend on such evaluation. Suffice it to state that in the attachment to the Complaint, the alleged debits and credits representing outflows and inflows of funds were added together, thus, the resulting total amounts are wrong and misleading.

Meanwhile, we cannot make further comments considering the confidential nature of the matter.¹⁴⁵

161. The accusations against the respondent on her owning undisclosed bank accounts are based solely on an online article that was published back in 2016. This so-called proof is hearsay twice removed and thus inherently unreliable.

162. The respondent had already denied former Senator Trillanes' accusations. She is not even aware of such accounts. Moreover, it is perplexing how the Articles considers Trillanes' exposé as gospel truth.

163. The documents obtained by Trillanes, assuming they even exist and are reliable (which is denied), violate the confidentiality of bank deposits under the Bank Secrecy Law,¹⁴⁶ and are therefore inadmissible. Any allegations that rely on them should be disregarded, much more the conclusions derived from them.

164. In BSB Group, Inc. v. Sally Go,¹⁴⁷ the Supreme Court already ruled that evidence secured in violation of the Bank Secrecy Law is inadmissible, thus:

In sum, we hold that the testimony of Marasigan on the particulars of respondent's supposed bank account with Security Bank and the documentary evidence represented by

¹⁴⁵ AMLC Official Statement, attached as Annex 11, available at <http://www.amlc.gov.ph/16-news-and-announcements/95-amlc-official-statement2> (last accessed May 25, 2026)

¹⁴⁶ See Section 3, Republic Act No. 1405, Bank Secrecy Law

¹⁴⁷ BSB Group, Inc. v. Sally Go, G.R. No. 16844, February 16, 2010

the checks adduced in support thereof, are not only incompetent for being excluded by operation of R.A. No. 1405. They are likewise irrelevant to the case, inasmuch as they do not appear to have any logical and reasonable connection to the prosecution of respondent for qualified theft. We find full merit in and affirm respondent's objection to the evidence of the prosecution. The Court of Appeals was, therefore, correct in reversing the assailed orders of the trial court.

A final note. In any given jurisdiction where the right of privacy extends its scope to include an individual's financial privacy rights and personal financial matters, there is an intermediate or heightened scrutiny given by courts and legislators to laws infringing such rights. **Should there be doubts in upholding the absolutely confidential nature of bank deposits against affirming the authority to inquire into such accounts, then such doubts must be resolved in favor of the former.** This attitude persists unless congress lifts its finger to reverse the general state policy respecting the absolutely confidential nature of bank deposits.¹⁴⁸ (emphasis added)

165. In any case, what the Constitution¹⁴⁹ requires is for a public officer to submit a declaration under oath of his assets, liabilities, and net worth upon assumption of office, and as often as may be required by law, which undeniably was complied with by the respondent when she filed her SALNs.

166. Here, the Articles presented a so-called table showing the figures on the respondent's SALNs from the years 2007 to 2012 and the SALNs from 2016-2024 then broadly accuse her of amassing unexplained or ill-gotten wealth due to the increase of her net worth.¹⁵⁰

167. However, no evidence was submitted nor allegations stated to substantiate the claim of any ill-gotten wealth or to show how the amounts reflected in these publicly available documents were legally obtained. In fact, the Articles failed to allege or offer proof that any portion of the respondent's wealth was unlawfully obtained for the simple reason that none exists.

168. Finally, the allegation that the respondent violated the prohibition in the Constitution that the respondent pertaining to her business interest from 2022-2025 is an accusation that simply does not rise to the level of any impeachable offense. The Constitution does not mandatorily require a Vice President to divest her interest in a corporation, unless there is a conflict of interest. This is shown by the deliberations of the framers of the Constitution:

MR. FOZ: This provision would put a mere chief of an office or a mere director of a bureau and his assistants on the same level as members of the Cabinet and their assistants, the President and the Vice-president, and would prohibit them from doing so many

¹⁴⁸ Id.

¹⁴⁹ 1987 Constitution, Article XI, Section 17

¹⁵⁰ See Articles of Impeachment, p. 14

things as enumerated here. **The philosophy of this provision, I understand, is to avoid conflict of interest. What are the other purposes?**

MR. REGALADO: They are all enumerated there.

MR. FOZ: **Prohibiting them from having any financial interest in any transaction with the government and from practicing any profession.**

MR. REGALADO: Yes, like the prohibition against the practice of a profession.

MR. FOZ: In other words, I think we can sum up the purpose in conflict of interest.

MR. REGALADO: Not necessarily, because practicing a profession does not necessarily conflict with their financial interest.

MR. FOZ: Would it be that the reason is to enable them to devote all their time or most of their time to their offices?

MR. REGALADO: The most desirable trait of any public officer is to give full attention and devotion to his duties.

*** *** ***

MR. REGALADO: In the first place, we have stated that the purpose here is not only conflict of interest but to enable them to give full-time attention to their duties. It is assumed that when they sought appointment to this office, they were aware that there are limitations in the Constitution.

The mere fact that bureau directors are not on the level of the President is not a correct stratification because whether one is a bureau director, a deputy or a minister, the same devotion to duty is required.

If we say that we have to be realistic considering the rising cost of living, aside from the low salaries they are receiving, this can be remedied by increasing their compensation if the government can afford it or by their engaging in other activities not contrary to these specific disqualifications. Some of them teach to augment their income; that is why we pointed out to Commissioner de Castro that teaching is not a practice of a profession. **In other words, they can engage in any other revenue-producing, income-producing activity legitimate in nature provided it does not conflict with the objective sought in this section.**¹⁵¹ (emphasis added)

¹⁵¹ Records of the Constitutional Commission No. 42, Vol. 2, July 29, 1986, available at <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/24/51475> (last accessed May 25, 2026)

169. **No betrayal of public trust.** Foregoing considered, being mere speculations of ill-gotten wealth, the allegations pertaining to this Article certainly cannot pass scrutiny nor do they constitute any impeachable offense.

Article III

170. The foregoing allegations are repleaded herein by reference.

171. At the outset, the respondent objects to the distortion by the Committee on Justice of the statement of one of her counsel, Atty. Michael Wesley Poa.¹⁵²

172. In its Committee Report No. 261, upon which the Articles were based, the Committee on Justice falsely and maliciously claimed that "Atty. Michael T. Poa testified and confirmed having received envelopes containing sums of money"¹⁵³ from the respondent "in relation to the envelopes containing cash which he received from the respondent and in relation to the liquidation of DepEd's confidential funds."¹⁵⁴

173. The obvious purpose of this misrepresentation was to lend color to the accusation that the respondent committed bribery. However, this misrepresents what is plain from the record.

174. The hearing on April 14, 2026 and before the CGGPA show that no such "confirmation" was made by Atty. Poa. During the hearing on April 14, 2026, Atty. Poa categorically denied that he received envelopes in relation to confidential funds:

Atty. Poa: Yes. I'll give you an example po, a very concrete example. Pumunta po kami ng aming... ng ating Bise Presidente noon when she was Secretary of Education sa isang burol.. After po ng burol na iyon, marami nagpapa-picture sa kanya. May mga lumalapit po, may lumapit po na bata, nagbebenta po ng mga damit. It was a Shein na damit. I don't know if I'm correct... If I'm saying it correctly.

But she said... she said, "Tulungan natin. Gusto kong bilhin, 'no.'" So, siyempre, ang dami pong nagpapa-picture sa kanya. Ako po iyong naglabas ng pera para po mabayaran iyong binebentang damit. At pagkatapos po noon, a few days after, naaalala niya. Tinanong niya sa akin kung magkano ang nagastos ko. It was around 6,000 if I'm not mistaken. Binalik po niya sa akin iyong 6,000. Ganun po iyong nature ng... *** That's why I keep on saying reimbursement.¹⁵⁵

175. Moreover, there is no basis for the prosecution to conclude that the purpose for which the supposed envelopes were given was for the Head of Procuring

¹⁵² Hereafter, Atty. Poa

¹⁵³ See Committee Report No. 261, p. 30

¹⁵⁴ Id., p. 31

¹⁵⁵ See LIVE – House panel hearing on VP Sara Duterte impeachment (April 14, 2026), <https://youtu.be/pnct91Vh0xw?t=32677> (last accessed May 25, 2026); TSN – Committee on Justice dated April 14, 2026, pp. 206-7

Entity to disregard procurement law. This is plainly wrong. Such conclusion cannot be credibly drawn from the mere say-so of an official who was terminated by the respondent for lack of trust and confidence.

176. It must be emphasized that Atty. Lopez, during the hearing before the CGGPA on November 20, 2024, testified that Gloria Mercado was terminated on the ground of loss of trust and confidence and not because of her supposed refusal to defy procurement laws.

177. **No culpable violation of the Constitution.** There is no invocation of any particular constitutional provision that respondent had allegedly violated in this particular article. The respondent cannot respond to an inexistent allegation.

178. **No bribery.** The Articles allege that the respondent committed bribery when she gave envelopes containing monetary gifts or payments to the officials of the Department of Education to induce violation and circumvention of procurement and other laws.

179. However, bribery should be understood as it is defined under the Revised Penal Code.¹⁵⁶ It is committed by any public officer who receives a gift, promise, or offer in consideration of performing an act constituting a crime, or refraining from doing his official duties, or giving undue favors. In impeachment, bribery must be grave in character so as to rise to the level of the other grounds for impeachment.¹⁵⁷

180. Apart from bare allegations, the Articles failed to substantiate the accusation that the money came from the respondent or that the latter committed acts of bribery in exchange for some consideration by reason of their office, or in consideration or promise of doing something in return, or to influence the DepEd's procurement process. In fact, records show that no such witness confirmed these accusations. Rather, these are mere personal inferences made by the respondent's accusers.

181. **No betrayal of public trust.** Having no leg to stand on, it cannot be considered that the allegations contained in the Articles regarding alleged bribery committed by the respondent constitute a betrayal of public trust or an impeachable offense.

Article IV

182. **No culpable violation of the Constitution.** Nothing in these Articles state any particular constitutional provision that the respondent allegedly violated.

183. **No high crimes.** This should be understood to refer to those crimes or offenses "which, like treason and bribery, are of so serious and enormous a nature as

¹⁵⁶ Revised Penal Code, Articles 210-212

¹⁵⁷ See Duterte, *supra*, where the Supreme Court ruled that "[t]he violations charged should be **sufficiently grave** as to be a violation of the definition of public trust in Article XI, Section 1 of the Constitution"

to strike at the very life or the orderly workings of the government."¹⁵⁸ Borrowing the American definition, it should thus be acts that are of "sufficient seriousness so as to justify the belief that there was a grave violation of the trust imposed on the official sought to be impeached."¹⁵⁹

184. The Articles claim that the respondent committed grave threats and inciting to sedition because she supposedly contracted the assassination of the President, the First Lady, and the former Speaker of the House and that her and her family's past actions destabilize and sow unrest in the government.¹⁶⁰

185. There is, however, no impeachable offense to speak of here because the elements of inciting to sedition and grave threats, as alleged in the Articles to have been committed by respondent, do not exist.

186. For an act to constitute the crime of Inciting to Sedition, *the purpose of the overt act should be for the audience to rise publicly and tumultuously to attain force, intimidation, or other illegal means to achieve any of the objectives enumerated under Article 139, par. 1 to 3 of the Revised Penal Code.*

187. To sustain an accusation under said provision, the following elements must concur: (a) there is a person who does not take any direct part in sedition; (b) said person incites others to the accomplishment of any of the acts which constitute sedition; and (c) the incitement was done by means of speeches, proclamations, writings, emblems, cartoons, banners, or other representations tending to the same.¹⁶¹ None of the elements are present in this case.

188. First, the Articles do not allege any acts constitutive of sedition which has been committed by respondent.

189. Second, the respondent cannot be said to have incited other people to commit any acts constituting sedition.¹⁶² Here, there is no allegation, much less proof, that the respondent incited others to commit violence or take up arms to commit any of the objects which will constitute sedition.

¹⁵⁸ See Vol. No. 408 (July 26, 1986) and No. 041 (July 28, 1986), Journal of the Constitutional Commission; See also Isagani A. Cruz and Carlo L. Cruz, *Philippine Political Law*, p. 739 (2014 Edition); and Joaquin G. Bernas, S.J., *The 1987 Constitution of the Republic of the Philippines, A Commentary*, p. 1152-1153 (2009 Edition)

¹⁵⁹ See Vol No. 408 (July 26, 1986), Journal of the Constitutional Commission

¹⁶⁰ Articles of Impeachment, p. 18

¹⁶¹ Articles of Impeachment, p. 18

¹⁶² Revised Penal Code, Article 139, states that the crime of sedition, is committed by persons who rise publicly and tumultuously in order to attain by force any of the following objects: (1) to prevent the promulgation or execution of any law or the holding of any popular election; (2) to prevent the Insular Government, or any provincial or municipal government or any public officer thereof from freely exercising its or his functions, or prevent the execution of any administrative order; (3) to inflict any act of hate or revenge upon the person or property of any public officer or employee; (4) to commit, for any political or social end, any act of hate or revenge against private persons or any social class; and (5) to despoil, for any political or social end, any person, municipality or province, or the Insular Government or the Government of the United States, of all its property or any part thereof."

190. Third, the last element cannot exist because of the absence of the first two elements.

191. That the respondent did not commit inciting to sedition is even highlighted by the respondent's statement discouraging her supporters to go to the streets to conduct rallies and to instead air their protests on social media:

Sa panahon ngayon na sobrang mahal ng presyo ng mga bilihin lalong-lalo na ng pagkain, sasabihin ko sa mga supporters, sa taong bayan, na unahin muna nila ang trabaho at negosyo nila kaysa sa mag-rally sila sa daan (Times like this, when prices are high, especially food, I will tell my supporters, the people, to prioritize their jobs and businesses instead of rallying on the streets)," she added.

Noting that the Philippines is the social media capital of the world, the official instead advised her supporters to protest online.

"Kung gusto talaga nilang magsalita at tumulong, doon nalang sila sa social media kung saan nakakatrabaho pa rin sila pero nagagawa nila kung ano yung nararamdaman nila na gusto nilang gawin — at iyon ay magsalita at marinig sila ng taumbayan at ng mundo (If they want to speak up and help, they can do so on social media where they can work and express their feelings—where they can speak up and be heard by the people and the world)," Duterte said.¹⁶³ (emphasis added)

192. Meanwhile, grave threats, whether the first or second form,¹⁶⁴ has the following elements: (a) any person who threatens another with the infliction upon the person, honor or property of the latter or of his family of any wrong; (b) the wrong amounts to a crime; (c) there is demand for money or imposition of a lawful or unlawful condition; and (d) purpose was not attained. None of these elements of grave threats¹⁶⁵ are present in this case.

193. First, there is no threat because the respondent merely answered a reporter who asked her about a certain Operation Romanov against her and her family. Her response was neither a factual assertion of any actual threat nor with intent to do any harm.

¹⁶³ VP Sara to supporters: Work, protest online instead of holding street rallies, Manila Bulletin, available at <https://mb.com.ph/2025/02/09/vp-sara-to-supporters-work-protest-online-instead-of-holding-street-rallies?> (last accessed May 25, 2026)

¹⁶⁴ See *Garma v. People of the Philippines*, G.R. No. 248317, March 16, 2022, where the Supreme Court ruled that in grave threats, the wrong threatened which amounts to a crime may or may not be accompanied by a condition

¹⁶⁵ Revised Penal Code, Article 282, states that Any person who shall threaten another with the infliction upon the person, honor or property of the latter or of his family of any wrong amounting to a crime, shall suffer:

1. The penalty next lower in degree than that prescribed by law for the crime he threatened to commit, if the offender shall have made the threat demanding money or imposing any other condition, even though not unlawful, and said offender shall have attained his purpose. If the offender shall not have attained his purpose, the penalty lower by two (2) degrees shall be imposed.

If the threat be made in writing or through a middleman, the penalty shall be imposed in its maximum period.

2. The penalty of arresto mayor and a fine not exceeding One hundred thousand pesos (P100,000), if the threat shall not have been made subject to a condition.

194. Second, since the respondent's statement is not a threat, it does not constitute a wrong which amounts to a crime.

195. Third, there is neither demand for money nor imposition of a condition. The law requires as an element a demand for money or any **imposition** of a lawful or unlawful condition to sustain a charge for grave threats. Here, neither of these two kinds of condition was imposed or made by the respondent.

196. Moreover, the condition that is contemplated under Article 282 (1) of the Revised Penal Code is in the nature of a demand where failure to comply on the part of the other person results in the threatened consequence. This is obviously not the case here. Certainly, the respondent did not impose any condition for her and her family to be killed under what the reporter had claimed to be an "operation Romanov" against her and members of her family.

197. Finally, no such "purpose" contemplated by law was attained or could have been attained precisely because the respondent did not have any purpose other than simply answer a speculative inquiry. Likewise, no proof was shown that the respondent actually contracted with an assassin to kill the President, the First Lady, and the former Speaker of the House.

198. There is also no allegation nor proof in the Articles that there is persistence in the idea involved in the supposed threats. Under controlling jurisprudence, "threats without 'persistence' are not considered Grave Threats under Article 282." In Israel v. People of the Philippines,¹⁶⁶ the Supreme Court discussed:

It is settled that **grave threats must be serious in such a way that it is deliberate, and that the offender "persists" in the idea involved in the threats. The element of "persistence" as a manifestation of the mens rea was likewise adopted by the Court in Reyes, to wit:**

The demonstration led by petitioner against Agustin Hallare in front of the main gate of the naval station; the fact that placards with threatening statements were carried by the demonstrators; their persistence in trailing Hallare in a motorcade up to his residence; and the demonstration conducted in front thereof, culminating in repeated threats flung by petitioner in a loud voice, give rise to only one conclusion; that the threats were made "with the deliberate purpose of creating in the mind of the person threatened the belief that the threat would be carried into effect." Indeed, Hallare became so apprehensive of his safety that he sought the protection of Col. Monzon, who had to escort him home, wherein he stayed while the demonstration was going on. **It cannot be denied that the threats were made deliberately and not merely in a temporary fit of anger, motivated as they were by the dismissal of petitioner one month before the incident.** We, therefore, hold that the appellate court was

¹⁶⁶ Israel v. People of the Philippines, G.R. No. 265736, November 19, 2025

correct in upholding petitioner's conviction for the offense of grave threats. (Citation omitted, emphasis supplied)

In *Paguirigan*, the Court emphasized that the nature of Grave Threats pertains "precisely [to] the persistence in a threat that gives it the aggravating character so as to amount to a crime," [...] ¹⁶⁷ (emphasis added; citations omitted)

199. The Supreme Court then concluded in *Israel* that "the element of 'persistence' is **necessary and material** to determine the *mens rea* for the crime of *amenaza* or Grave Threats under Article 282 of the Revised Penal Code."¹⁶⁸ Thus, "without proof that the offender persisted in the idea of the threat, the *mens rea* for Grave Threats under Article 282 is lacking,"¹⁶⁹ as in this case.

200. It is clear that respondent's statements were not intended as a threat considering that the element of *mens rea* is absent.

201. Further, the respondent merely exercised constitutionally protected speech in opposition to the policies, conduct, actuations, and overreach of the current administration. In this regard, "[f]reedom of speech is often called a primordial right. In a way, all other freedoms rest on the freedom of speech. As a United States Supreme Court Justice said, speech is the beginning of thought and the right to think is the beginning of freedom. Thus, speech is the beginning of freedom itself."¹⁷⁰

202. Freedom of expression is accorded with primacy and high esteem in our jurisdiction as it is a fundamental postulate of our constitutional system.¹⁷¹ **It applies not only to those that are favorably received but also to those that offend, shock, or disturb.**¹⁷²

203. In fact, speech with political consequences occupies a higher position in the hierarchy of protected speeches and is conferred with a greater degree of protection.¹⁷³ The fact that political speech enjoys preferred protection within our constitutional order ¹⁷⁴ stems from the fact that it is a direct exercise of the sovereignty.¹⁷⁵

204. **No betrayal of public trust.** Given the foregoing, the allegations against the respondent clearly do not constitute any crime or impeachable offenses

¹⁶⁷ *Israel v. People of the Philippines*, G.R. No. 265736, November 19, 2025

¹⁶⁸ *Id.*

¹⁶⁹ *Id.*

¹⁷⁰ *Guevarra v. Court of Appeals*, G.R. No. 276682, February 10, 2025, J. Leonen, Concurring Opinion

¹⁷¹ See *Francisco Chavez v. Raul M. Gonzales*, G.R. No. 168338, February 15, 2008

¹⁷² See *Ang Ladlad LGBT Party v. Commission on Election*, G.R. No. 190582, April 8, 2010

¹⁷³ See Justice Marvic Leonen's Separate Concurring Opinion in *Loida Nicolas-Lewis v. Commission on Elections*, G.R. No. 223705, August 14, 2019; See also *Francisco Chavez v. Raul M. Gonzales*, G.R. No. 168338, February 15, 2008; *The Diocese of Bacolod v. COMELEC*, G.R. No. 205728, January 21, 2015

¹⁷⁴ See *The Diocese of Bacolod v. COMELEC*, G.R. No. 205728, January 21, 2015

¹⁷⁵ See *Francisco Chavez v. Raul M. Gonzales*, G.R. No. 168338, February 15, 2008

and therefore, do not give rise to the impeachable ground of betrayal of public trust under Article XI, Section 1 of the Constitution.¹⁷⁶

Allegations in Support of the Motion to Exclude Evidence

205. The foregoing allegations are pleaded herein by reference.

206. Given that they come from an illegal, unauthorized proceeding, and violation of existing laws on the prohibition against disclosure of financial data and records appended to the Articles of Impeachment, their exclusion is warranted:

207. Impeachment proceedings are undoubtedly a *sui generis* constitutional proceeding that requires basic evidentiary rules and due process.¹⁷⁷ In this regard, it is akin to a criminal case that possess political characteristics as it is used as a constitutional measure designed to protect the State from official delinquencies and malfeasance.

208. The first time the concept of impeachment was introduced to our jurisdiction was in the case of In Re Impeachment of Honorable Antonio Horrilleno,¹⁷⁸ where the Supreme Court in citing State ex rel. Attorney-General v. Hasty¹⁷⁹ described an impeachment process as "highly penal in character."¹⁸⁰

209. The twin nature of impeachment, involving both judicial and political aspects, underscores the gravity of the proceedings and the severity of its consequences, which include the perpetual disqualification of the respondent from holding any public office and the enduring stigma that attaches to a conviction.

210. In his Opinion, Supreme Court Honorable Justice Samuel H. Gaerlan rightly points out that the "judicial aspect of impeachment partakes a penal nature; that is, impeachment is akin to a criminal proceeding."¹⁸¹ He further cites the then Senator Mirriam Defensor-Santiago who said: "conviction on impeachment is a stunning penalty, the ruin of life."¹⁸²

211. Accordingly, Section 14, Article III of the Constitution that guarantees the right of an accused to due process of law should necessarily apply. It provides:

SECTION 14. (1) No person shall be held to answer for a criminal offense without due process of law.

(2) In all criminal prosecutions, the accused shall be presumed innocent until the contrary is proved, and **shall enjoy the right to**

¹⁷⁶ Duterte, *supra* at note 5

¹⁷⁷ Duterte v. House of Representatives et al., G.R. Nos. 278353 & 278359, July 25, 2025

¹⁷⁸ 43 Phil. 212, March 20, 1922

¹⁷⁹ 84 Ala. 121, 63 So. 559, November 4, 1913, Issued by the Alabama Supreme Court

¹⁸⁰ Duterte, *supra* at note 5, citing In re Horrilleno (1922)

¹⁸¹ Duterte, *supra* at note 5, Concurring Opinion of J. Gaerlan

¹⁸² Id, citing TSN, In re: Impeachment Trial of Honorable Chief Justice Renato C. Corona, Case No. 002-2011, May 29, 2012, p. 11

be heard by himself and counsel, **to be informed of the nature and cause of the accusation against him**, to have a speedy, impartial, and public trial, to meet the witnesses face to face, and to have compulsory process to secure the attendance of witnesses and the production of evidence in his behalf. However, after arraignment, trial may proceed notwithstanding the absence of the accused provided that he has been duly notified and his failure to appear is unjustifiable. (emphasis added)

212. The right to due process, particularly the right to be informed, is especially crucial and compelling in an impeachment proceeding considering the penal character and severe consequences that may result from conviction.

213. The High Court's ruling in Duterte now settles the principle that impeachment cannot be treated as a purely political exercise detached from fundamental constitutional protections. Rather, it must be conducted in a manner consistent with the essential requirements of fairness, including the observance of the right to be heard, to be informed of the charges, and to be afforded a meaningful opportunity to present one's defense. In the words of the Supreme Court, the Bill of Rights applies to the entire impeachment process.¹⁸³

214. Again, the Supreme Court in Stonehill, recognized that a fishing expedition is itself indicative of the absence of evidence to establish a probable cause.¹⁸⁴ Thus, evidence subsequently obtained through such impermissible exploratory efforts cannot be allowed to cure the original insufficiency of evidence and must therefore be excluded from consideration.

215. The foregoing pronouncement squarely applies in the present case. Having already declared the Saballa and Cabrera complaints allegedly sufficient in form and substance, and without requiring the complainants to complete any allegedly lacking evidence at the proper stage, the subsequent acts of the Committee on Justice in searching for, soliciting, and receiving additional evidence from third parties unmistakably reveal that the purported evidence originally attached to the complaints were indeed insufficient to support the charges against the respondent.

216. As discussed above, the following alleged pieces of evidence were introduced, assessed, made part of the record, and attached to the Articles referred to the Senate, despite not forming part of the Impeachment Complaints, which were supposedly declared sufficient in form and substance, among others:

- i. Letter dated April 14, 2026 from Atty. Vinas-Pantonal Law Office with Attachments
 - a. Certification of Appearance dated April 7, 2026 issued by the BJMP

¹⁸³ Duterte, *supra* at note 5, p. 3

¹⁸⁴ Stonehill, *supra* at note 94

- b. Certification issued by the Office of the Clerk of Court
- c. Oath of Office
- ii. Commission on Audit (COA) DepEd (2023 Checks and Disbursement Vouchers);
- iii. COA Issuances Replies (2024)
- iv. COA OVP Checks, Disbursement Vouchers, ARs
- v. NBI Annexes (2025-2025)
- vi. NBI Submission Letter dated May 2025
- vii. PSA 1 dated March 31, 2026
- viii. PSA 2 dated December 8, 2024
- ix. PSA 3 dated December 11, 2024
- x. Ramil Madriaga's Supplemental Affidavit dated April 11, 2026 and its attachments
- xi. A video of the respondent referring to Ramil Madriaga
- xii. Certified True Copy (CTC) of the Committee on Good Government and Public Accountability (CGGPA) Transcript of Stenographic Notes (TSN) dated September 18, 2024
- xiii. CTC CGGPA TSN dated September 25, 2024
- xiv. CTC CGGPA TSN dated October 17, 2024
- xv. CTC CGGPA TSN dated November 5, 2024
- xvi. CTC CGGPA TSN dated November 11, 2024
- xvii. CTC CGGPA TSN dated November 20, 2024
- xviii. CTC CGGPA TSN dated November 25, 2024
- xix. CTC CGGPA TSN dated December 9, 2024;
- xx. Covered Transaction Reports (CTRs) and Suspicious Transaction Reports (STRs) for the period of 2006 to 2025;
- xxi. Financial Intelligence Reports on respondent;
- xxii. Investigation Reports on: (a) Manases Carpio and (b) respondent;
- xxiii. Former Senator Antonio "Sonny" Trillanes Affidavit dated April 21, 2026 and its attachments;

- xxiv. SALNs for the years 2007-2012 and 2016-2024;
- xxv. Corporate Documents of the Corporations declared by respondent in her SALNs; and
- xxvi. Affidavit of Investigation of NBI.

217. The Committee on Justice's resort to a fishing expedition was therefore not merely improper; it was an implied admission that the complaints, standing on their own, failed to establish the evidentiary basis necessary to justify the continuation of the proceeding.

218. This impropriety becomes even more pronounced considering that the Committee on Justice proceeded to obtain and receive documents pertaining to periods when respondent was not yet an impeachable officer.

219. Such documents are manifestly beyond the legitimate scope of an impeachment inquiry, which should necessarily be confined to acts or omissions allegedly committed during respondent's tenure as an impeachable officer and in connection with the discharge of official functions.

220. The introduction of supposed records relating to periods prior to respondent's assumption of an impeachable office demonstrates the boundless and exploratory nature of the Committee's inquiry, undertaken not to examine a properly supported accusation, but to search for any material to build an otherwise insufficient impeachment complaint against the respondent.

221. To allow the admission and consideration of evidence subsequently gathered through this impermissible fishing expedition would sanction a clear circumvention of due process and reward the very procedural abuse condemned in Stonehill.

222. These evidence, having been obtained outside the bounds of the House Committee on Justice's proper function and in violation of respondent's constitutional rights, must necessarily be excluded from the records and disregarded for all purposes in these proceedings.

223. Finally, documentary and testimonial evidence with regard to the supposed acts outside the respondent's impeachable office should likewise be excluded for being in violation of the rule that "the basis of any charge must be for impeachable acts or omissions committed in relation to their office and during the current term of the impeachable officer."¹⁸⁵

¹⁸⁵ Stonehill, *supra* at note 94

Documentary & Testimonial Evidence

Without waiver of any of her objections pleaded in this Answer, the respondent reserves the right to present documentary, testimonial and object evidence as trial progresses.

Availment of Modes of Discovery

Without waiver of her foregoing objections, the respondent reserves the right to avail of the Modes of Discovery under the 2019 Revised Rules on Civil Procedure and Revised Rules on Criminal Procedure.

Relief

WHEREFORE, it is respectfully prayed that the Articles of Impeachment be dismissed for the reasons cited and discussed above, and for failing to meet the constitutional requirements of an impeachment proceeding.

Other equitable reliefs are likewise prayed for.

Makati City, May 25, 2026

FORTUN NARVASA & SALAZAR

Counsel for the Respondent

23rd Floor, Multinational Bancorporation Centre
6805 Ayala Avenue, City of Makati, 1226 Philippines
Telephone No. (63 2) 8812-8670
info@fnslaw.com.ph

By:


PHILIP SIGRID A. FORTUN

PTR No. 10765578; 01-05-2026; Makati City
IBP Lifetime No. 02049; 01-04-2001; Makati City Chapter
Roll of Attorneys No. 33041
MCLE Compliance Certificate No. IX-0000534; 09-16-2025


GREGORIO Y. NARVASA II

PTR No. 10765577; 01-05-2026; Makati City
IBP Lifetime No. 02050; 01-04-2001; Makati City Chapter
Roll of Attorneys No. 33985
MCLE Compliance Certificate No. VIII-0010474; 07-12-2024


SHEILA C. SISON

PTR No. 10765569; 01-05-2026; Makati City
IBP No. 563591; 12-07-2025; Makati City Chapter
Roll of Attorneys No. 63457
MCLE Compliance Certificate No. VIII-0026330; 04-07-2025



KRISTINE R. FERRER

PTR No. 10764640; 01-05-2026; Makati City
IBP No. 017795; 03-22-2026; Davao City Chapter
Roll of Attorneys No. 58882
MCLE Compliance Certificate No. VIII-0038520; 05-14-2025



CARLO JOAQUIN T. NARVASA

PTR No. 10764642; 01-05-2026; Makati City
IBP Lifetime No. 1041301; 05-24-2016; Makati City Chapter
Roll of Attorneys No. 65977
MCLE Compliance Certificate No. VIII-0010473; 07-12-2024



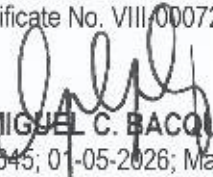
JUSTIN NICOL B. GULAR

PTR No. 10764643; 01-05-2026; Makati City
IBP No. 586076; 01-04-2026; Makati City Chapter
Roll of Attorneys No. 83103
MCLE Compliance Certificate No. VIII-0007247; 03-13-2024



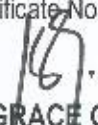
DAVID RONELL M. GOLLA VII

PTR No. 10764646; 01-05-2026; Makati City
IBP No. 559660; 11-18-2025; Makati City Chapter
Roll of Attorneys No. 88223
MCLE Compliance Certificate No. VIII-0007245; 03-13-2024



LINDON MIGUEL C. BACQUEL

PTR No. 10764645; 01-05-2026; Makati City
IBP No. 563283; 12-05-2025; Makati City Chapter
Roll of Attorneys No. 78001
MCLE Compliance Certificate No. VIII-0007218; 03-13-2024



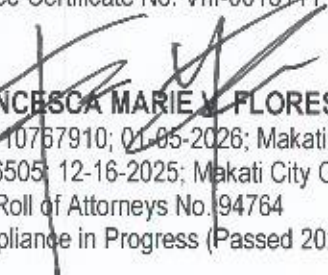
KAROL GRACE G. OROCEO

PTR No. 10764647; 01-05-2026; Makati City
IBP No. 566500; 12-16-2025; Cebu City Chapter
Roll of Attorneys No. 76331
MCLE Compliance Certificate No. VIII-0007272; 03-13-2024



CLARLAINE F. RADO

PTR No. 10767907; 01-05-2026; Makati City
IBP No. 566501; 12-16-2025; Bohol Chapter
Roll of Attorneys No. 82840
MCLE Compliance Certificate No. VIII-0018111; 12-19-2024



FRANCESCA MARIE V. FLORES

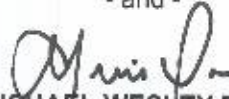
PTR No. 10767910; 01-05-2026; Makati City
IBP No. 566505; 12-16-2025; Makati City Chapter
Roll of Attorneys No. 94764
MCLE Compliance in Progress (Passed 2024 Bar)



MIGUEL CARLOS A. FERNANDEZ

PTR No. 10767908; 01-05-2026; Makati City
IBP No. 558980; 11-14-2025; Makati City Chapter
Roll of Attorneys No. 95165
MCLE Compliance in Progress (Passed 2024 Bar)

- and -



MICHAEL WESLEY T. POA

PTR No. 10765709; 01-05-2026; Makati City
IBP No. 576111; 12-29-2025; Quezon City Chapter
Roll of Attorneys No. 73271
MCLE Compliance Certificate No. VIII-0023327; 02-27-2025



MARK C. VINLUAN

PTR No. 10767490; 1-07-2026; Makati City
IBP Lifetime No. 015777; 1-26-2017; Makati City Chapter
Roll of Attorneys No. 63019
MCLE Compliance Certificate No. VIII-0027818; 04-15-2025



RALPH B. BODOTA

PTR No. No. 5184435; 01-06-2026; Sta. Rosa City
IBP No. 515940; 11-03-2025; Catanduanes Chapter
Roll of Attorneys No. 71590
MCLE Compliance Certificate No. VIII-0008462; 05-04-2024



ROBERTON BATUNGBACAL

PTR No. No. 5187595; 01-12-2026; Sta. Rosa City
IBP No. 559615; 11-18-2025; Makati City Chapter
Roll of Attorneys No. 71590
MCLE Compliance Certificate No. VIII-0010421; 07-12-2024

Copy furnished:

The Prosecution Panel
House of Representatives
Batasang Pambansa Complex
Batasan Hills, Quezon City

4193-1-07

VERIFICATION

I, **SARA Z. DUTERTE**, Filipino, of legal age, and with office address at 11/F Robinson's Cybergate Plaza, EDSA corner Pioneer Street, Mandaluyong City, subscribing under oath, depose and state that:

1. I am the Vice President of the Republic of the Philippines, and the respondent in this case.

2. I have caused the preparation of the foregoing Answer, read and understood all of its contents, and attest that all allegations contained therein are true and correct of my own personal knowledge and/or based on authentic records and/or documents.

3. I confirm that the foregoing Answer is not being filed to harass, cause unnecessary delay, or needlessly increase the cost of litigation, and that the factual allegations therein have evidentiary support, or, if specifically so identified, will likewise have evidentiary support after a reasonable opportunity for discovery.

I affix my signature herein to certify the truthfulness of the allegations in the foregoing submission.


SARA Z. DUTERTE

SUBSCRIBED AND SWORN to before me this 25th day of May 2026 in Makati City by the affiant personally appearing before me and exhibiting her Philhealth ID No. 16-025268201-2 as competent evidence of her identity.

Doc. No. 257;
Page No. 53;
Book No. III;
Series of 2026

4193-1-07


FRANCESCA MARIE V. FLORES
Notary Public of Makati
Appointment No. M-010
Commission until December 31, 2027
Roll of Attorneys No. 94764
PTR No. 10767910; 01-05-2026; Makati City
IBP No. 566505; 12-16-2025; Makati City Chapter
23F Multinational Bancorporation Centre
6805 Ayala Avenue, Makati City